

NAME OF TRUST

A 508 (C)(1)(A) DESIGNATED TRUST

Declaration of Trust for **NAME OF YOUR TRUST**

NAME OF YOUR TRUST

DECLARATION OF IRREVOCABLE TRUST

Established Month XX, 20XX 00:00 AM

THIS INDENTURE (“Agreement”) made this **XXth day of Month, 20XX** serves as a Declaration of Trust and shall continue for a term of **twenty-five (25) years** from this day, between **NAME OF GRANTOR** herein known as the Grantor, and party of the first part, and **NAME OF TRUSTEE**, herein known as the First Trustee, under the name of **NAME OF TRUST**. **This Private Contract is made for the purpose of establishing a private contract irrevocable trust faith based, non-profit organization under the Common Law, by NAME OF GRANTOR, Sui Juris, of The YOUR STATE Republic within the unincorporated republic of the United States of America, acting here in as the “Grantor.”** With this Agreement, the parties intend to create a private contract express trust to the benefit of the Grantor’s family, heritors, and heirs, hereinafter “Beneficiaries” for the purpose of identifying, accumulating, purchasing and holding all assets that become available and to provide for a prudent administration and distribution system administered by legal persons acting in a fiduciary capacity.

WITNESSETH: Whereas the Grantor, irrevocably assigns and conveys to the Trustee the specific property identified in the attached Schedule A, in exchange for one-hundred (100) TCU, which are to be transferred and held in Trust, for the Beneficiaries, until dissolution and disbursement of said Trust.

WHEREAS, the Trust is authorized to exist and function through its board of directors, composed of the total active number of trustees, collectively as the Board.

WHEREAS, the Trust shall be amendable, as described in the bylaws, and shall be irrevocable by the Grantor or by any other person or entity. It is the intention of the Grantor to make to the Beneficiaries, an absolute gift of the Trust Certificate Units, in which the Beneficiaries shall not have any vested interest, until the termination of this Trust and final distribution of accumulated assets or any early distribution of the assets thereof. There shall be exactly 100 Trust Certificate Units available to the Beneficiaries.

WHEREAS, The Trust shall be administered, managed, governed and regulated in all respects according to applicable Common Law Jurisdiction of **YOUR STATE** republic as well as the Uniform Trustees Powers Act, and the Constitution of the United States of America, and the Uniform Commercial Code (only when and if applicable and/or allowable to remain under the jurisdiction of the Common Law). The domicile of the trust is within the **YOUR STATE**

REPUBLIC WITHIN THE UNINCORPORATED REPUBLIC OF THE UNITED STATES OF AMERICA.

WHEREAS, The Trustees, in addition to all other powers granted by this Indenture and any subsequent minutes and bylaw, shall be given the following additional powers with respect to the Trust, to be executed from time to time at the discretion of the Trustee.

Management of the Trust

- i. To invest and reinvest, lease, rent, mortgage, insure, repair, improve, or sell any of the real and personal property of the Trust as the Trustee deems advisable and to sell, liquidate or continue to operate, at the Trustee's discretion, and corporation, partnership or other business interest which may be received or initiated by the Trust.

Mortgages and Property

- ii. To enforce any and all mortgages, pledges and deeds of Trust held by the Trust and to purchase at any sale thereunder, any such real or personal property subject to any mortgage, pledge or deed of trust.

Litigation and Adjustment of Claims

- i. To initiate or defend, at the discretion of the Trustee, any litigation affecting the Trust Estate, and to submit to binding arbitration, to settle, release or adjust, with or without compensation, any and all claims affecting the Trust Estate or Trust Organization.

Attorneys, Advisors, Agents and Managers

- ii. To employ and to pay from the Trust Estate, reasonable compensation to such attorneys, accountants, brokers and investment, tax and other advisors as the Trust deems advisable. The Trust may also employ a management company to provide for the preservation and growth of the Trust assets.

IN WITNESS whereof, the parties hereto have executed this agreement on the day and year first written above.

NOTARY/WITNESS:

Grantor: **NAME**

First Trustee: **NAME**

TRUST CONSTITUTION AND/OR ARTICLES OF ORGANIZATION

We, the undersigned, of full age, for the purpose of forming a faith based, non-profit organization/corporation and/or 508 (c)(1)(a) under and pursuant to the provisions of **Chapter XXX** of the State Statutes Annotated, known as the State Nonprofit Corporation Act, and laws amendatory thereto, do hereby certify that at a regular meeting of the undersigned incorporators held on the **X day of Month, 20xx**, in **City, State**, pursuant to the provisions of **Chapter XXX**, State Statutes Annotated, did associate ourselves as a body corporation and did adopt the following Articles of Incorporation:

ARTICLE I TRUST NAME

The undersigned desiring to establish a Faith Based Organization named **NAME OF YOUR TRUST** Trust within the Common Law Jurisdiction of **<State>**, hereinafter referred to as the “FBO”.

ARTICLE II REGISTERED AGENT AND PRINCIPAL OFFICE ADDRESS

The principal office, mailing address, contact number, and registered agent for **NAME OF YOUR TRUST** is as follows:

Name of trustee (Trustee)

c/o Address

Contact number

ARTICLE III NON-PROFIT PURPOSE AND PREROGATIVES

SECTION 1. GOVERNMENT

This trust organization shall have the right to govern itself and to conduct its own affairs according to the standard of the common law and of any denomination. This right shall specifically include such matters as the appointment of a trustee, successors and protectors, the appointment of the board member, and the conducting of its own services and organizational programs. The trust organization shall have the general power to do all lawful acts herein mentioned, as full and to the same extent as natural persons might or could do, including but not limited to maintaining or defending any action or any administrative or arbitration proceeding, holding meetings of its directors or shareholders or carrying on other activities concerning its internal affairs, maintaining bank accounts and share accounts in savings and loan associations, and to make custodian or agency arrangements with a bank or trust company, effecting sales through independent contractors.

SECTION 2. PROPERTY

This trust organization shall have the right to purchase or acquire by gift, bequest or otherwise, either directly or as trustee, and to own, hold in trust, use, sell, rent, convey, mortgage or otherwise dispose of any real estate or assets as may be deemed necessary for the furtherance of its purposes, in accordance with its Constitution and Bylaws. All property of the trust organization shall be deeded to the organization trust and held in its name.

SECTION 3. PURPOSES

The purposes of the trust organization shall be to establish and maintain a community to uphold the health, growth, protection, education, expansion, welfare, preservation and continuation of mankind. <Add any additional business related purpose you desire here>

Tax Exemption. This trust organization/corporation is organized exclusively for one or more of the purposes as specified in Section 501(c)(3) and 508 (c)(1)(a) of the Internal Revenue Code of 1986 (hereinafter the “Code”) pursuant to the provisions of **Chapter XXX** of the State Statutes Annotated, known as the State Nonprofit Corporation Act, and laws amendatory thereto, as enacted or hereinafter amended, including, for such purposes, the making of distributions to organizations that qualify as exempt organizations under Section 501(c)(3) and 508 (c)(1)(a) of the Code. There shall be no capital stock issued, and this corporation is not organized for profit, nor shall any person or member derive any benefit whatsoever, nor shall any pecuniary profit or benefit inure to the members of this corporation, except that the corporation shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes as described in this trust.

Notwithstanding any other provision of these articles, this corporation shall not, except to an insubstantial degree, engage in any activities or exercise any powers that are not in furtherance of the purposes of this corporation, or is not permitted to be carried on by a corporation exempt from federal income tax under section 501(c)(3) and 508 (c)(1)(a) of the Internal Revenue Code, or corresponding section of any future federal tax code.

Dissolution. “Dissolution” means the complete disbanding of the Corporation so that it no longer functions as a corporate entity. Upon the dissolution of the Corporation, its property shall be applied and distributed as follows: (1) all liabilities and obligations of the Corporation shall be paid and discharged or adequate provision shall be made therefore; (2) pursuant to a plan adopted by the board of directors, assets shall be transferred or conveyed to one or more domestic or foreign corporation, society, or organization that qualify as exempt organizations under section 501(c)(3) and 508 (c)(1)(a) of the Code and are engaged in activities substantially similar to those of the corporation.

ARTICLE IV AFFILIATION

SECTION 1. FELLOWSHIP

This trust organization shall have perpetual existence and is a sovereign assembly. As such, this trust organization maintains the right to govern its own affairs. Recognizing, however, the benefits of cooperation with other like-minded congregations, this trust organization voluntarily affiliates with other organizations in its national and district expressions. This trust organization also reserves the right to network with other organizations, as it deems beneficial. All matters of affiliation shall be decided as prescribed in these Constitution and Bylaws.

SECTION 2. CONFORMATION

This trust organization shall maintain its standards of membership and qualifications for Board Members.

SECTION 3. RECOGNITION

Officers of this trust organization shall be recognized and respected by grantors, trustees and beneficiaries of this faith based organization.

ARTICLE V TRUSTEE(S)

All powers shall be exercised under the authority of, and the affairs of the Trust organization shall be managed under the direction of the Trustee(s), except as otherwise provided by law or in these articles of organization and the bylaws of the Trust. The Trustee(s) shall have the power to elect additional or successor trustees at any time. The name, address, and initial term of office of the First Trustee of the Board is as follows:

Name	Address	Term
<Name of Trustee>	<Address>	<XX Years>

ARTICLE VI DURATION

The Trust shall exist for **twenty-five (25) years** from **<date>**

ARTICLE VII INDEMNIFICATION

The Trust organization shall indemnify its Trustees, employees, and agents to the full extent permitted by the Law, provided however that no such indemnification shall be permitted if such indemnification would violate the purposes of the Trust as specified in these Articles.

ARTICLE VIII TENETS OF FAITH

We believe that humankind is created in the image of our creator. As such, we were designed to be representatives for the creator on the earth. We believe in unconditional love, unlimited forgiveness, and undying hope. <Add or change this section with your faith and business mission>

ARTICLE IX MEMBERSHIP

The Members of this trust organization as referenced in its Articles of Incorporation shall be called members. The term members shall be used solely to reflect the responsibilities that the members share with the faith based organization. In no way is the term member intended to create or imply a legal relationship of partnership, joint venture or any other legal relationship other than that of member as defined by the Articles of Incorporation of this trust, the Business Corporation Law of Any State, as now enacted, and the Nonprofit Corporation Law of Any State, as now enacted.

The members of this Faith Based Organization shall consist of those who have met the requirements for this membership as stated in these Constitution and Bylaws, have been received into membership, and who voluntarily agree to be governed by these Constitution and Bylaws. All members of this Faith based organization agree to abide by the membership Covenant. Membership in this organization does not simply imply joining the organization, but partnering in accomplishing its mission by donating in the form of accepting a product or service created by this trust. As such, every member should have a vested interest in ensuring that this organization succeeds in its mission.

ARTICLE X GOVERNMENT AND ORGANIZATION MANAGEMENT

SECTION 1. Trustee

The trustee shall be responsible for the mission of the trust and organization. Trustee shall make decisions regarding the direction of the organization, and shall be accountable for those decisions to the Board of Directors.

SECTION 2. Board of Directors

The Board of Directors identified in this organization's Articles of Incorporation shall be named the Board of Directors. The Board of Directors shall consist of no less than three and no more than five individuals who shall be responsible for advising, supporting, and holding the trustee accountable for the mission of the organization. At least one-half of the Board of Directors shall

also be members of this organization. No more than two members shall be related to each other. Board of Directors shall be determined to be related to the fourth degree of consanguinity. For the purposes of determining relatedness, husbands and wives shall each respectively be deemed to be blood relatives of each other's families. The Board of Directors shall approve the decisions of the Trustee to borrow money in excess of fifteen percent (15%) of the previous year's total revenue or in excess of one hundred thousand dollars (\$100,000), whichever is lesser, approve staff hiring decisions and salaries of the Staff of the FBO, determine the salary of the Trustee, make disciplinary decisions regarding Board of Directors, approve the annual budget, approve, make disciplinary decisions regarding the trustee, appoint a new trustee when the position becomes vacant if the trustee is unable to appoint a successor, and amend these Constitution and Bylaws when it is deemed necessary to fulfill the mission of the FBO.

SECTION 3. MEMBERSHIP

The Membership shall fulfill the mission of the organization by giving regularly, helping fulfill missional decisions of the trustee, and affirming the decisions previously made by the trustee and approved by the Board of Directors when such decisions result in the need to borrow money in excess of fifteen percent (15%) of the previous year's total revenue or purchase or lease real property.

ARTICLE XI MEETINGS

SECTION 1. ANNUAL VISION MEETING

There shall be an Annual Vision Meeting of the FBO in which the goals for the coming year shall be presented along with a financial report from the previous year. Special Meetings may be held as the occasion requires.

SECTION 2. BOARD OF DIRECTOR MEETINGS

The Board of Directors shall meet at least three (3) times per year at the call of the trustee. Special meetings of the Board of Director may be held as the occasion requires.

SECTION 3. NOTICE OF MEETINGS

Notice of the Annual Vision Meeting and Special Meetings shall be announced and included. Notice of any meeting of the Board of Directors shall be given at least two weeks prior to the meeting. Notice may be given by fac-simile, electronic mail, or hand delivery, and shall be deemed given when received. Any Board of Directors Member may waive notice of any meeting by a written statement executed either before or after the meeting. Attendance and participation at a meeting without objection to notice shall also constitute a waiver of notice.

SECTION 4. VOTING

Whenever a vote is required to be taken by the Trust organization, the Board of Directors as required by law, the Articles of Incorporation of this organization, or these Constitution and Bylaws, each Board of Directors Member of this organization shall have one vote. Voting by proxy shall not be permitted.

ARTICLE XII

FINANCE

SECTION 1. SOURCES

Funds for the maintenance of the vision and mission of the faith based organization shall be provided by the voluntary donation and contributions of its members, friends, and guests without pressure or coercion.

SECTION 2. ADMINISTRATION

Donations shall be received by the faith based organization at times and in ways agreed upon by the trustee and the Board of Directors. Funds received shall be administered by the trustee. All funds shall be deposited in a bank or financial institution selected by the trustee. Records shall be kept of all receipts and disbursements. Those responsible for handling or dispersing funds shall be properly bonded or insured if deemed necessary and shall be subject to state and federal criminal background checks, as well as financial background checks.

SECTION 3. SOLICITATION

No individual, association, or corporation shall be permitted to solicit funds from the people of the FBO for any reason without the consent of the trustee and beneficiaries.

SECTION 4. BORROWING

The beneficiaries shall have the authority to borrow such sums as may be needed from time to time to advance the mission of the organization provided the transaction is not in excess of fifteen percent (15%) of the previous year's total deposits or two hundred fifty thousand dollars (\$250,000), whichever is lesser. Any transaction which involves the borrowing of monies in excess of fifteen percent (15%) of the previous year's total deposits or in excess of two hundred fifty thousand dollars (\$250,000), whichever is lesser, shall be approved by a consensus decision during any official meeting of the board of directors. Any transaction which involves the borrowing of monies in excess of fifteen percent (15%) of the previous year's total deposits shall also be affirmed by a two-thirds vote of the FBO during any official Board Meeting. Any transaction involving the purchase or lease of real property shall be approved by a consensus decision during any official meeting of the board of directors, and affirmed by a two-thirds vote of the board of directors present at any official board meeting.

SECTION 5. AUDIT

On a annual basis, the Board of Directors shall be responsible for obtaining an audit of the finances of the organization from an authorized independent source, the results of which shall be presented at the Vision Meeting.

SECTION 6. CONFLICTS OF INTEREST

(a) In the event that any Board of Directors has a conflict of interest that might properly limit such director's fair and impartial participation in the board deliberations or decisions, such director's shall inform the board as to the circumstances of such conflict. If those circumstances require the nonparticipation of the affected directors, the board may nonetheless request from the directors any appropriate non confidential information which might inform its decisions.

"Conflict of interest," as referred to herein, shall include but shall not be limited to, any transaction by or with the organization in which a Board of Directors has a direct or indirect personal interest, or any transaction in which such directors is unable to exercise impartial judgment or otherwise act in the best interests of the organization. (b) No Board of Directors shall take part in the final deliberation in any matter in which he or she, members of his or her immediate family, or any organization to which such director has allegiance, has a personal interest that may be seen as competing with the interest of the FBO. Any Board of Directors who believes he or she may have such a conflict of interest shall notify his or her respective director prior to deliberation on the matter in question, and the respective director shall make the final determination as to whether any Board of Directors has a conflict of interest in any matter. The minutes of the respective Board Meeting shall reflect disclosure of any conflict of interest and the recusal of the interested Board of Directors.

ARTICLE XIII

PROPERTY

SECTION 1. PURCHASE AND LEASE

All property of the Faith Based Organization shall be deeded to the trust and held in its name. The purchase or lease of real property must be approved by the trustee.

SECTION 2. SALE AND LEASE

Real property of the trust may be sold, leased, mortgaged, or otherwise disposed of only if approved by the trustee.

SECTION 3. DOCUMENTATION AND AUTHORITY FOR PURCHASE, SALE, AND BORROWING The trustee shall certify all documents relating to the purchase, sale, lease, or mortgage that the same has been duly authorized in accordance with these Constitution and Bylaws. Such certification shall be held to be conclusive evidence thereof.

SECTION 4. DISSOLUTION

Upon dissolution of the Faith Based Organization Corporation or the winding up of its affairs, the Board of Directors shall, after making provision for the payment of all of the liabilities of the trust, dispose of all the assets of the trust exclusively for the purposes of the FBO Corporation in such manner to set forth in these Constitution and Bylaws or, in the event such is not in existence, to such other organizations which are described in Section 501(c)(3) and 508 (c)(1)(a) of the Internal Revenue Code of 1986, as amended, or the corresponding provisions of any subsequent United States Internal Revenue Law, as the Board of Directors shall determine. Any assets not so disposed of shall be given to the beneficiaries. Any assets not so disposed shall be disposed of by a court of competent jurisdiction of the county in which the principal office of the Corporation is then located to such organizations described in Section 501(c)(3) of the Internal Revenue Code of 1986, as amended, or in accordance with the corresponding provisions of any subsequent United States Internal Revenue Law, as such court shall determine.

ARTICLE XIV

AMENDMENTS

SECTION 1. AMENDMENTS

This Constitution may be amended by the unanimous vote of the Board of Directors then in office and/or beneficiaries.

ARTICLE XV
ARTICLE FILER

IN WITNESS WHEREOF, I the undersigned, being one of the trustees hereinbefore named, for the purpose of forming an Irrevocable, Pure Trust, make these Articles, hereby declaring and certifying that the facts herein stated are true, and accordingly have hereunto set my hand this
<xxth day of Month A.D. 20xx>

<First M. Last, Trustee>

NAME OF YOUR TRUST

BYLAWS

ORGANIZATIONAL PURPOSE AND INTENT

ARTICLE ONE

SECTION 1: The purposes of the trust organization shall be to establish and maintain a community to uphold the health, growth, protection, education, expansion, welfare, preservation and continuation of mankind. Also, to help create sustainable change and real growth in the places we touch through hard work, dedication and love to the people.

SECTION 2: It is expressly declared that an unincorporated Business Trust by Contract, otherwise known as Declaration of Irrevocable Trust, or a Pure Trust, is hereby created, and not a living trust, or a partnership or a corporation, or a company, or a joint venture, or a limited partnership, or a limited liability company but a trust as defined by the Internal Revenue Code (IRC).

FAITH BASED ORGANIZATION MEMBERSHIP

ARTICLE TWO

SECTION 1: Standard of Membership.

1. The standard of membership in this FBO shall be: Agreement with the Tenets of Faith as set forth in Article VIII of the constitution. Agreement to give ten percent of income (donations) on a regular basis, as well as other contributions as the creator enables, for the support of this organization. Agreement to comply with and be bound by these bylaws. Evidence of a cooperative, submissive, humble and spiritual character.

SECTION 2: The FBO shall have four categories of members. The designation of such categories and the qualifications and rights of the members of such categories shall be as follows:

1. Active. Active membership shall be open to all those eighteen (18) years of age and older who shall freely give of themselves to the commitments of membership as stated in Section 1 of this Article. The voting membership shall be composed of the active members who have been active members for at least ninety consecutive days prior to a regular or specially called business meeting.

2. Associate. Associate membership shall be composed of those who for various reasons do not wish to be active members but who desire the fellowship of this FBO. They shall freely give of themselves to the commitments of membership as stated in Section 1 of this Article, but shall be non-voting members.

3. Junior. Junior membership shall be open to those whose age is below eighteen (18) years of age, who have sufficient spiritual and mental maturity to freely give of themselves to the commitments of membership as stated in Section 1 of this Article. Junior members shall be non-voting members. When a junior member reaches the age of eighteen (18), the Board shall change his membership to another appropriate category.

4. Inactive. Any enrolled member who fails to participate regularly or who ceases to take an active part in the life of the FBO may be transferred to the inactive roll according to the procedures set forth in this Article, Sections 8 and 9. Inactive members shall not have a vote in organization meetings. A written request by the inactive member or a motion by a member of the Board for reinstatement to the prior status shall be considered at the next duly noticed meeting of the Board. An affirmative vote of two-thirds of a quorum of the Board shall be required for such action.

SECTION 3: Election of Members

1. By application or transfer. Persons desiring to become members of the FBO shall fill out an application form approved by the Board. The Board may accept, in lieu of a completed application, a letter of transfer from another organization. The Trustee or their designated membership committee shall examine the application or transfer according to the standards of membership (Section 1), and shall make recommendations to the Board. The Board shall consider the application or transfer at its next duly noticed meeting. An affirmative vote of two-thirds of a quorum of the Board shall be required for election to membership. Persons so elected shall be publicly received into membership at any regular organization service.

2. Membership Class. The Trustee and Board may authorize the establishment of a membership class and require any prospective member to complete the class prior to the prospective member's submission of an application or transfer. The Membership Class shall be under the direction of the Trustee or their designee.

3. Credentialed Ministers. Ministers credentialed, other than those on the FBO staff or payroll, may hold Associate Membership in this organization. Ministers credentialed, who are on the FBO staff or payroll may hold active membership during the time they hold position with the organization. Except for the provision just given, active membership may not be given to any credentialed minister without the written approval of the Board.

SECTION 4: Resignation

Any member desiring to resign may file a written resignation with the Trustee or Secretary who shall present it to the Board at its next duly noticed meeting. An affirmative vote of two-thirds of a quorum of the Board shall be required to approve the resignation.

SECTION 5: Transfer

Any member desiring to be transferred to some other organization may apply to the Trustee or Secretary for a letter of transfer. Said letter shall be granted if approved by an affirmative vote of two-thirds of a quorum of the Board.

SECTION 6: Alteration or Termination of Membership

1. Unscriptural conduct or failure to maintain and abide by the standards of membership given in Sections 1 and 10 of these Bylaws shall constitute sufficient grounds upon which any member may be removed from the membership or disciplined by being placed in a category of membership other than active membership. The Board shall have the duty to investigate any charges against a member and to determine whether there has been unscriptural conduct or failure to maintain and abide by the standards of membership given in Sections 1 and 10 of this Article. The Board shall ascertain what action has been taken by the Trustee or others to counsel or assist the member. In acting upon any such investigations, the Board shall follow the procedures set forth in this Article, Sections 7, 8 and 9. Upon a vote in accordance with these procedures the Board may terminate the membership and strike that member's name from the roll or reclassify their membership.

SECTION 7: Review of Membership Roll

The Trustee and Board shall revise the membership roll within ninety (90) days of the annual business meeting and at such other times as they deem necessary. The review preceding the annual business meeting shall be completed not less than fifteen (15) days prior to the meeting. At its annual revision and more often as need may require, the Board shall remove from the roll all names of members who are deceased, together with the names of those who have resigned, or whose membership has been terminated. The roll shall accurately reflect the category of membership of each member.

SECTION 8: Action of the Board Affecting Membership Status

The Board by an affirmative vote of two-thirds of a quorum may alter or terminate the membership of a member for cause at any duly noticed meeting provided that at least ten (10) days prior written notice of such pending action is given to the said member. The member involved shall be given an opportunity to be heard at the Board meeting.

SECTION 9: Right of Appeal

Any member whose membership has been altered or terminated by the Board has the right to appeal. Appeal for reconsideration may be made to the Field Director and Sectional Leadership Team, with the Board of the FBO. Its decision is final.

SECTION 10: Necessity of Unity:

1. Cooperative action. The membership of this Faith based organization shall give consent to its forms of government, together with the past policies mutually agreed upon, and agree to the policy of fundamental unity and agreement, alike in doctrine, conduct and action, and shall conform to the Scriptural injunction that there be no divisions in the body. They shall be subject to those who may be delegated to rulership as the creator plainly teaches, that the principle of fellowship may be kept inviolate and perpetuated, recognizing its fundamental importance. A member who exercises the rights of membership given in these bylaws shall not be deemed to be lacking cooperative action unless such a member refuses to abide by a final decision once that decision has been reached or pursues his bylaw-created rights with an unknown spirit and manner.

2. Attitude toward strife. No member of this faith based organization may use means to incite or engender strife, but shall work in harmony with the membership, the Board, and board officers. If there is cause for dissatisfaction, it shall be called to the attention of the Trustee and the Board in a manner and spirit which conforms to provisions given in these bylaws.

ORGANIZATION MEETINGS

ARTICLE THREE

SECTION 1: Regular Services

Meetings for public worship shall be held as may be determined by the Trustee and Board.

SECTION 2: Special Services

Services, conventions, and other special services shall be planned by the Trustee. The Trustee may consult with the Board in such planning. The Trustee shall keep it informed of such plans.

SECTION 3: Annual Business Meeting

The organization year shall coincide with the calendar year, beginning on January 1 and running through December 31 of each year. There shall be a general meeting of the membership to be known as the annual business meeting. It shall be held annually during the months of January or February for the transaction of such business as may be brought to the meeting. The time and place of the annual business meeting shall be set by the Board.

The annual business meeting may be postponed for a reason, for a period not to exceed thirty (30) days, by action of the Trustee and Board.

SECTION 4: Order of Business

The regular order of business for the annual business meeting of the organization shall be as follows:

1. Devotional
2. Roll call
3. Approval of prior minutes
4. Report of the Trustee
5. Report of the Treasurer
6. Report of committees
7. Unfinished business
8. Nominations for open Board positions (if applicable)
9. New business
10. Adjournment

SECTION 5: Special Business Meetings Special business meetings of the organization may be called by: The Trustee or The Secretary of the Board upon the written order of a majority of the Board.

SECTION 6: Notice of Business Meetings

Notice of all annual and special business meetings shall be made by verbal announcement during two consecutive morning services prior to such meeting. Notice may additionally be published in the form of bulletin announcements, mail, or in such other form as may be determined by the Board. An exception regarding notice of a business meeting shall be made when it is called by the Trustee; in such case, the notice shall be made by verbal announcement during one morning service provided notice of such a meeting shall have been mailed to the active membership at least seven (7) days prior to the meeting.

SECTION 7: Quorum. There shall be two alternatives in determining a quorum.

No matters may be voted on and no business may be conducted at any meeting, when called for any other purpose except that specified in the immediately preceding paragraph, unless twenty-five percent (25%) or more of the active members shall be present to constitute a quorum, referred to in these bylaws as a minimum quorum.

SECTION 8: Absentee Voting

Absentee voting or absentee ballots shall not be permitted at any annual or specially called organization business meeting. This prohibition extends to all elections and all issues.

SECTION 9: Unauthorized Meetings and Activities

No member of this FBO shall promote private enterprises, activities, or meetings (such as private prayer meetings, Bible studies, action groups) which involve the membership of this FBO which have not been sanctioned by the Trustee and Board. No member shall use his influence to draw other members of the FBO into such outside activities. If additional services are desired besides those provided for, such services must have the approval of the Trustee and be under his general supervision. In the event the FBO is temporarily without a Trustee, such services must have the approval of the Board.

THE BOARD

ARTICLE FOUR

SECTION 1: Definition

There shall be a Board of this FBO which shall be composed of the Trustee and such other members as are appointed by the Trustee. Such a Board may be referred to as the Official Board or the Board of Directors. "Board member" shall be a term referring to members of the Board other than the Trustee, although the Trustee shall be a member of the Board.

SECTION 2: Qualifications

1. The Board member's relationship to our creator. Board members shall be persons who evidence a mature and vital walk with our creator. They shall be the persons whom others readily identify as those who walk in the spirit; who can be turned to in times of spiritual need for good and wise counsel; who manifest a life of holiness, wisdom, and faith, and who are filled with the Spirit.
2. The Board member's relationship to family. A Board member may be unmarried or married to one spouse. A Board member's family shall be a positive, wholesome, and imitable influence upon others (inasmuch as children who have come of age cannot be coerced into the Faith, Board members are not to be regarded as necessarily derelict in their duties if their teenage and older children are not believers)
3. The Board member's relationship to self. A Board member shall be a wholesome person spiritually and emotionally. The Board member's life shall manifest the fruit of the Spirit: love, joy, peace, endurance, kindness, goodness, faithfulness, gentleness, and self-control.
4. The Board member's relationship to the Body of our creator. Board members shall be persons to whom believers look for guarding the FBO from false doctrine and false teachers, promoting and/or teaching sound doctrine within the organization, and providing leadership, direction and counsel to the congregation in matters pertaining to the FBO as a whole. Their involvement in the life of the congregation and commitment to the standards of membership given in Article V, Sections 1 and 10, shall be exemplary.
5. The Board member's relationship to the world. Board members must be above reproach, having a good reputation among those outside the faith based organization

SECTION 3: Duties

1. The Board shall act in an advisory capacity to the Trustee in all matters pertaining to the organization in its spiritual life.
2. The Board, with the Trustee, shall be the executive body in the conduct of the functions and privileges of the FBO. They shall serve as directors of the corporation.
3. The Board, with the Trustee, shall act in the examination of applicants for membership and in the discipline of members.
4. The Board, with the Trustee, shall be the trustees of the Trust property and finances, and shall be responsible for care of the same.
5. The Board shall conduct itself within guidelines and procedures given in the Bylaws and the Manual for this organization, Trustees and Boards, and shall be monitored by the Directors.

6. The Board, with the Trustee, shall adopt procedural rules from time to time as necessary for the proper functioning of the FBO.

7. The Board and the Trustee shall fulfill their spiritual and temporal duties in a spirit of servanthood to our creator, the organization and one another. Neither the Trustee nor the Board are to exercise dictatorial leadership over one another or the organization; but shall cooperatively work together as a model of unity and leadership, each submitting to one another as the Spirit, need, or circumstance may require. When disunity becomes present between the Trustee and Board, it shall be the responsibility of each to attempt to solve the difficulty between them; if failing to do so, it shall be the responsibility of each to seek the mediating efforts of the Trustee designee in order that the conflict may not be carried into the organization, but resolved within the circle of leadership.

8. The Board shall determine the salary of the Trustee, ministers and employees of the organization, as provided in Article XII, Section 7. The Trustee shall be provided an annual paid vacation, if possible, time and length to be determined by mutual agreement. The Board shall also endeavor to provide the finances necessary for the Trustee to attend meetings. Such attendance shall not be considered a part of the Trustee's vacation.

SECTION 4: Number of Board Members

The number of persons serving as Board members shall be a minimum of three (3) plus the Trustee. As the organization grows, others can be added at the discretion of the Trustee.

SECTION 5: Election of Board Members

The Trustee shall appoint the Board members. Board members may be appointed from within or outside the organization.

SECTION 6: Term of Office

The term of office shall be for a period of three (3) years for board members. The time may be extended at the discretion of the Trustee upon recommendation of the Director.

SECTION 7: Regular Meetings

The Trustee shall call a regular meeting of the Board within thirty (30) days after the annual business meeting. Thereafter, the Board may provide by resolution the time and place for the holding of additional regular meetings of the Board. The Board shall meet a minimum of three (3) times a year.

SECTION 8: Special Meetings

Special meetings of the Board may be called by or at the request of the Trustee or any two (2) Board members. The person or persons authorized to call special meetings of the Board may fix the time and place for holding any special meeting of the Board called by them.

SECTION 9: Notice of Meetings

1. Notice of regular meetings of the Board may be made by a Board resolution adopted at the initial meeting of the Board following the annual business meeting, or at any subsequent meeting of the Board during its term.

2. Notice of any special meeting of the Board shall be given at least four days previously thereto by written notice delivered personally or sent by mail pursuant to Article XI. Any Board member may waive notice of any meeting. The attendance of any Board member at any meeting shall constitute a waiver of notice of such meeting, except where a Board member attends for the express purpose of objecting to the transaction of business because of failure of notice. The business to be transacted at the meeting need not be specified in the notice or waiver of notice of such meeting, unless specifically required by law or by these bylaws.

SECTION 10: Quorum

A majority of the Board members shall constitute a quorum for the transaction of business at any meeting of the Board. If less than a majority of Board members are present at said meeting, a majority of the Board members present may adjourn the meeting from time to time without further notice.

SECTION 11: Manner of Acting

The act of a majority of the Board members present and voting at a meeting at which a quorum is present shall be the act of the Board, unless the act of a greater number is required by law or these bylaws.

SECTION 12: Vacancies

In the event of a vacancy due to the resignation, death, or removal of a Board member, the trustee shall select the replacement. A Board member shall have vacated their office when they submit a written resignation or when he verbally resigns to the Trustee. A Board member may have their office declared vacant by the Trustee.

OFFICERS AND STAFF

ARTICLE FIVE

SECTION 1: Trustee

1. Qualifications. The Trustee of this organization shall at all times be a credentialed minister of the organization, or a minister serving with the express written approval of the Executive Presbytery of the organization. In no event shall a former Trustee of this organization who is no longer credentialed by the organization, serve as an employee of this organization without the express written consent of the Executive Presbytery of the organization, Inc.

2. Duties.

a. The Trustee, as designated in the Scriptures, is the head of the organization under the leadership of our creator, and is referred to under the title of "Trustee" or "shepherd" (Ephesians 4:11), "bishop" or "supervisor" (I Timothy 3:2-7), and "elder" (Titus 1:5).

b. The Trustee shall have oversight of the organization, its ministries and contractors, in accordance with the provisions of Article VII, Section 3.

c. The Trustee shall be the President of the Corporation, Chairman of the Board, and shall preside over all organization Business meetings and Board meetings; except when the trustee provides otherwise.

d. The Trustee shall be an ex-officio member of all other Boards and committees within the organization.

e. The Trustee shall be responsible for the preparation of the agenda of all organization business meetings and Board meetings, except when the trustee provides otherwise.

f. The Trustee shall provide for all services of the organization and shall arrange for all special meetings, conventions, and revival campaigns. No person shall be invited to minister in the organization without the trustees approval. The Trustee shall endeavor to represent the organization in faith based activities. The Trustee shall perform all other duties necessary to the work of the ministry.

3. Manner of election.

a. The Trustee shall be chosen by the trustee of the FBO.

b. The faith based Leadership Team may receive an advisory secret ballot vote from the active membership prior to the appointment of a Trustee, it being understood that said advisory vote shall not be binding upon the faith based Administrative Committee.

4. Term of office. The term of the Trustee's office shall be for an indefinite period; the term to expire upon thirty days notice given by resignation of the Trustee, or by action of the trustee. The Trustee's ministry shall be reviewed at least annually by the Field Director and faith based Presbyter, who may make recommendations to the faith based Leadership Team concerning continuation of the Trustee's tenure.

SECTION 2: Co-Trustees and Independent Contractors

All associate and assistant Trustees, directors of youth, music and education, and any other members of the Trustee or organization staff and all other organization employees shall be appointed by the Trustee, subject to prior ratification by the Board. All appointments shall expire whenever the office of Trustee is vacated or by action of the Trustee and Board.

SECTION 3: Vice-Chairman

The Field Director shall be a member of the Board and shall serve as Vice-Chairman of the Board. They shall preside over, or designate a Chairman pro tem for all organization business

meetings and Board meetings in the absence of the Trustee. If the Office of Trustee is vacated, the Field Director shall assume responsibility for the general supervision of the organization.

SECTION 4: Secretary

The Secretary of the organization shall be a member of the Board and shall keep, or cause to be kept, a book of minutes of all organization business meetings and meetings of the Board. He shall keep, or cause to be kept, a record of the membership of the organization, and shall be custodian of all legal documents of the organization and its corporate seal. They shall perform such other duties as belonging to this office. The Secretary shall be appointed by the faith based organization.

SECTION 5: Treasurer

The Treasurer of the organization shall be a member of the Board and shall be responsible for all monies received into the treasury of the organization and shall disburse, or cause to be disbursed, such funds as directed by the Board under authority granted by the Board or these bylaws. He shall keep, or cause to be kept, itemized records of all receipts and disbursements, and shall furnish financial reports to the Board monthly and to the membership annually. His records shall be available at all times for audit under the direction of the Board. The Treasurer shall be appointed by the faith based organization.

DEPARTMENTS AND COMMITTEES

ARTICLE SIX

SECTION 1: Committees of the Board

The Board, by resolution adopted by a majority of its members, may designate one or more committees, each of which shall consist of one or more Board members, which committees, to the extent provided in said resolution, shall have and exercise the authority of the Board in the management of the organization; but the designation of such committees and the delegation thereto of authority shall not operate to relieve the Board or any individual Board member of any responsibility imposed by law or these bylaws upon it or the Board member.

SECTION 2: Other Committees and Departments of the Organization

Other committees and departments within the organization not having or exercising the authority of the Board in the management of the organization may be provided for by a resolution adopted by a majority of the Board present at a meeting at which a quorum is present. The members of such committees or the personnel of such departments shall be appointed by the Trustee subject to ratification by the Board. Anyone so appointed shall serve at the pleasure of the Trustee or Board.

SECTION 3: Chairman

One member of each committee shall be appointed chairman by the person or persons authorized to appoint the members thereof.

SECTION 4: Vacancies

Vacancies in the membership of any committee or department position may be filled by appointments in the same manner as provided in the case of the original appointments.

SECTION 5:. Quorum

Unless otherwise provided in the resolution of the Board designating a committee, a majority of the whole committee shall constitute a quorum and the act of a majority of the members present at a meeting at which a quorum is present shall be the act of the committee.

SECTION 6: Duties

Each committee may adopt rules for its own government not inconsistent with these bylaws or with rules adopted by the Board.

MANNER OF GIVING NOTICE

ARTICLE SEVEN

SECTION 1: Whenever these bylaws do not state otherwise, notice is required to be given to any Board member, officer, or member, and such notice shall not be construed to mean personal notice, but may be given in writing, by mail, by depositing the same in the post office or mailbox, in a postpaid sealed envelope, addressed to such member, officer, or Board member at such address as appears on the records of the organization and such notice shall be deemed to be given at the time when the same shall be thus mailed.

FINANCE

ARTICLE EIGHT

SECTION 1: Income

The financial needs of the organization shall be met by tithes, offerings, gifts, devises, bequests, trusts, annuities, contributions and such other means as the Board may approve.

SECTION 2: Budget

The Board shall prepare annually a unified budget for the organization. Said unified budget shall include all monies received or expended by or for any and all departments of the organization.

SECTION 3: Banking

The Treasurer shall properly account for or cause to be accounted for all monies received by any and all departments of the organization and immediately deposit or cause to be deposited the same in the bank account or accounts of the organization which the Board shall from time to time establish.

SECTION 4: Withdrawals

Two signatures shall be required on any withdrawal of monies from any account. The persons authorized to sign for said withdrawals shall be the President, Vice-President, Secretary, Treasurer, or persons named by the Board. All withdrawals shall be made under the supervision of the Board.

SECTION 5: Audit

The Board shall audit the books annually or more often. They shall review monthly income and disbursements statements.

SECTION 6: Encumbering

The Board shall not have the power to borrow. Authority to borrow is vested in the faith based Executive Presbytery (Article XIII, Section 2).

SECTION 7: Salaries

The Trustee shall be given regular and adequate financial support to the best of the organization's financial ability, the amount and manner of which shall be determined by agreement between the Trustee and Board. The salaries of all members of the Trustee staff and other full-time or part-time employees shall be set by the Board with the advice and counsel of the Trustee. All salaries and benefits shall be reviewed by the Board on an annual basis or more frequently as the Board desires. A general principle shall be that as the organization prospers and the General Fund income grows under the Trustee's leadership, that percentage of growth shall be applied to the Trustee's salary for the next year.

SECTION 8: Missionary commitments and Missions Projects

Regular financial support to missionaries, missionary projects, and other person(s) and causes related to missions shall be decided upon by the Board.

SECTION 9: Benevolence Fund

The organization, in the exercise of its religious purposes and mission, has established a benevolence fund to assist persons in financial need. The organization welcomes contributions to

the fund. Donors may feel free to suggest beneficiaries of the fund or of their contributions of the fund. However, the administration of the fund, including all disbursements, is subject to the exclusive control and discretion of the Board. The Board may consider suggested designations, but in no event is it bound to honor them. Donors wishing to make contributions subject to these conditions ordinarily may deduct their contributions if they itemize their deductions. Checks should be made payable to the organization, with a notation that the funds are to be placed in the benevolence fund.

SECTION 10: “First Money”

It is the responsibility of the Trustee, as CEO of the organization, to safeguard the testimony and financial reputation of the organization. “First money” shall go to the payment of the mortgage and other bills of the organization before salaries, either current or past. This applies also to any back or unpaid salaries at the time of the Trustee’s resignation.

COOPERATION WITH ANY DENOMINATION

ARTICLE NINE

SECTION 1: Benefits of Affiliation

This FBO may receive the following benefits resulting from its status as a Member FBO of the faith based.

1. Purpose. This FBO is entitled to participate in the reasons-for-being of faith based as declared in the Constitutional Declaration of the faith based Constitution.

2. Doctrine. This FBO is undergirded by sound Biblical doctrine (see Article IV).

3. Trustee and Staff Ministers. This FBO may be assured that those serving the FBO in a ministerial capacity shall be credentialed by and accountable to the faith based, or have the express written approval of the Executive Presbytery of the faith based organization.

4. Itinerant Ministers. This FBO is entitled, through its Trustee, to the strengthening ministry of evangelists, teachers, and various types of itinerant ministers credentialed with faith based.

5. Listing. This FBO is entitled to be listed in the current annual yearbooks. Such listing qualifies the FBO to receive donations. The FBO has the benefit of being under the umbrella of being faith based which qualifies as a non-profit corporation bearing Internal Revenue 501(c)(3) status.

6. Oversight and Accountability. This FBO is entitled to receive counsel and direction from those whose election and qualification have set them aside as overseers in God's work. Such counsel and direction may come from the Field Director or elected faith based Officials.

7. U.S. and Foreign Missions. This organization is entitled to participate in the vibrant home and foreign missionary work of faith based through giving its people and financial resources for the spread of the Gospel under a program with strict doctrinal and financial accountability.

8. Departments. This organization is entitled to utilize the services of faith based departments for the strengthening of its local ministry.

9. This organization. It is entitled to utilize the resources of faith based campus ministries for its college students to be nurtured in the Faith within a Christian or secular college context.

10. Official Representation. This organization, by action of its Board, may appoint one of its members to serve as a lay representative at faith based business meetings.

11. Organization Loans. This organization may utilize the resources of the faith based financial standing to help it obtain organization financing.

12. Change in Status. When the organization is capable in maturity, leadership and finance to become a self governing assembly, the pastor shall obtain permission from faith based to present this to the organization. At any regular or specially called business meeting, the active membership by majority vote of a maximum quorum may request the faith based Executive Presbytery to change the membership status of the organization from that of a faith based led organization to that of a self governing faith based Affiliated organization.

SECTION 2: Responsibilities of Affiliation

1. Prayer: This organization shall pray for the global, national and regional ministry of faith based.

2. Support: This organization shall support others.

a. National: This organization shall send an offering each year to the NATIONAL OFFICE OF faith based for its support in an amount not less than one dollar per organization constituents.

b. Regional: This organization shall send a minimum of one percent (1%) of its general fund, on a monthly basis, to the REGIONAL Ministry Fund for the undergirding of the REGIONAL work and expansion. Additional offerings may be given to REGIONAL departments and ministries.

c. Missions: This organization shall support to the best of its ability, on a monthly basis, foreign missionaries from faith based. To the best of its ability, and through the invitation of the Pastor, this organization shall have such appointed missionaries hold services and minister at missions meetings and conventions, and constituents of this organization shall be encouraged to give faith promises and/or offerings for the support of these missionaries and the approved projects they represent.

d. Organization Planting and Strengthening: This organization shall give an amount equivalent to ten percent (10%) of its foreign missions giving to REGIONAL Home Missions for planting and strengthening faith based organizations within the REGION.

3. Ministry and Mission: This organization shall maintain pure doctrine, operate within its own and faith based bylaws, conduct itself in a manner consistent with faith based principles and integrity, and ensure that its assets are not dissipated but at all times conserved and dedicated to the historic mission of the faith based.

4. Integrity and Fidelity: This FBO shall seek to exalt Christ in all its conduct and ministries. It shall remain faithful to live and proclaim the Gospel. It shall identify with and affirm its affiliation with the faith based.

5. Records: This FBO shall cause a copy of its important corporate records to be kept on file at the faith based Office. Such records shall include, but not be limited to the current:

a. Articles of organization

b. Constitution and/or Bylaws c. Annual Financial Report

c. Copies of Property Deeds

d. Completed Annual FBO Ministries Report furnished by faith based

e. All amendments made to the Articles of organization, Constitution and/or Bylaws

f. Proof of current casualty and comprehensive liability insurance: This FBO shall list faith based as an additional insured on its liability insurance policy.

g. Federal identification number.

6. Accountability: The faith based Articles of organization and Bylaws shall take precedence over the Articles of organization and Bylaws of this FBO. faith based shall not usurp the authority properly vested in this FBO; however, when the governance provisions of this faith based organization Articles of organization and/or Bylaws, the faith basedS provisions of this FBO are either silent on or in conflict with provisions made in the faith based Articles of organization and/or Bylaws, the faith based provisions shall govern.

7. Arbitration: Any controversy or claim between this FBO, or any member or officer of this FBO, or any person claiming to be a member or officer of this FBO and faith based or any other member or officer of this FBO, for which either party may have a cause for legal action (redress from any civil court) shall be submitted to binding arbitration. The arbitrators shall be chosen from the Panel of Arbitrators elected by faith based in accordance with its bylaws. The disputing parties shall each select one arbitrator from the Panel of Arbitrators, and the third arbitrator shall be selected by the two previously selected arbitrators. Such arbitration shall proceed in accordance with Title 9 of the Ohio Code of Civil Procedure, or any successor statute.

TAX QUALIFICATIONS AND LEGAL COMPLIANCE

ARTICLE TEN

SECTION 1: It is intended that the Trust be exempt from U.S. federal income tax as an organization described in The Internal Revenue Code Section 508(c)(1)(a) Benefits for Faith Based Organizations (FBO's) FBOes, integrated auxiliaries, and association of FBOes do not have to apply as a 501(c)(3) in order to be tax exempt and offer tax deductibility for contributions. All organizations seeking tax exempt status must apply to the IRS except FBO's. FBOs can be formed under Section 508(c)(1)(a) and enjoy "mandatory exceptions" from these requirements. Accordingly, the provisions of this Agreement of Trust shall be construed and the Trust shall be administered in such manner as to ensure its exemption from U.S. federal income

tax. Trustees shall have the power to amend the provisions of this Agreement of Trust, effective immediately, without application to any court, for the sole purpose of accomplishing such intent.

SECTION 2: It is intended that the Trust maintain compliance with all applicable laws. Accordingly, the provisions of this Agreement of Trust shall be construed and the Trust shall be administered in such manner as to ensure its compliance with all applicable laws. Trustees shall have the power to amend the provisions of this Agreement of Trust, effective, without application to any court, for the sole purpose of accomplishing such intent.

SECTION 3: It is intended that the Trust operate efficiently and effectively to accomplish its Mission as described in Section 7. Accordingly, the provisions of this Agreement of Trust shall be construed and the Trust shall be administered in such manner as to ensure that the Trust's purposes are not frustrated. Trustees shall have the power to amend the provisions of Section 13 of this Agreement of Trust, effective, without application to any court, for the sole purpose of accomplishing such intent.

TAX EXEMPT PURPOSES

ARTICLE ELEVEN

SECTION 1: The Trust is organized, and shall be administered, distributed, and operated exclusively for charitable and educational purposes within the meaning of The Internal Revenue Code 508(c)(1)(a) Benefits for Faith Based Organizations (FBO's) FBOes, integrated auxiliaries, and association of FBOes do not have to apply as a 501(c)(3) in order to be tax exempt and offer tax deductibility for contributions. All organizations seeking tax exempt status must apply to the IRS except FBO's. FBO's can be formed under Section 508(c)(1)(a) and enjoy "mandatory exceptions" from these requirements of the Code.

GRANT REQUIREMENTS

ARTICLE TWELVE

SECTION 1: Eligible Grant Recipients shall be limited to:

1. Tax-exempt organizations described in Section The Internal Revenue Code Section 508(c)(1)(a) Benefits for Faith Based Organizations (FBO's) FBOes, integrated auxiliaries, and association of FBOs do not have to apply as a 501(c)(3) in order to be tax exempt and offer tax deductibility for contributions. All organizations seeking tax exempt status must apply to the IRS except Faith Based Organizations. FBO's can be formed under Section 508(c)(1)(a) and enjoy "mandatory exceptions" from these requirements of the Code;
2. Educational organizations described in Section 170(b)(1)(A)(ii) of the Code;
3. The Internal Revenue Code Section 508(c)(1)(a) Benefits for Faith Based Organizations (FBO's), Ministry, integrated auxiliaries, and association of a church do not have to apply as a 501(c)(3) in order to be tax exempt and offer tax deductibility for contributions. All

organizations seeking tax exempt status must apply to the IRS except FBO's. FBO's can be formed under Section 508(c)(1)(a) and enjoy "mandatory exceptions" from these requirements of the Code;

4. The instrumentality of a state or federally recognized tribe or American Nationals per definition of 8 U.S.C. 1408, including a non-profit organization chartered under the tribal law of a state or federally recognized tribe, that furnishes assistance designed to further Tribal farming or ranching activities; community development, provided, however, that
 - a. The use of any grant funds by such grant recipients shall be restricted exclusively to charitable and educational purposes described in Section 170(c)(2)(B) of the Code to accomplish the trust mission.

SECTION 2: Trust's Mission

1. The grant recipient shall annually provide the Trust with audited financial statements and reports as required by the Trust; and If the grant recipient is an American National or governmental entity, it shall agree to a limited waiver of sovereign immunity with respect to the Trust's right to enforce the terms of the grant.
2. Where required, the Trust shall comply with Expenditure Responsibility described in subsection (b)(3) below.

SECTION 3: Grant Requirements.

1. Grant recipients shall demonstrate to the satisfaction of the Trustees that the grant recipient:
 - a. Will use grant funds to accomplish the Trust's Mission and Tax-Exempt Purposes;
 - b. Will return any grant funds not used for such purposes to the Trust;
 - c. Will not use grant funds to provide more than an incidental private benefit to any individual, provided, however, that there limitation is not intended to and shall not be construed to prohibit grantees described above from making loans to individual farmers and ranchers for purposes consistent with the Trust's Mission;
 - d. Has sufficient organizational capacity to accomplish the purposes of the grant; and
 - e. Will make efficient use of grant funds without paying administrative overhead expenses in excess of reasonable amounts to accomplish the purposes of the grant, taking into account the amount of administrative expenses that a like organization would ordinarily pay for like expenses in like circumstances. The Trustees will consider best practices for grant making private foundations in determining what are reasonable administrative overhead expenses.
2. Grant Reporting and Recordkeeping.
 - a. Grantees shall submit full and complete annual reports to the Trust on the manner in which the funds are spent and the progress made in accomplishing the purposes of the grant.
 - b. Grantees shall keep records of receipts and expenditures with respect to the use of grant funds and shall make grantee's books and records available to the Trust at reasonable times.
3. Expenditure Responsibility. The Trust shall comply with the expenditure responsibility requirements of Section 4945(h) of the Code for all grants to organizations described in Section 4945(d)(4)(A) of the Code.

4. Grants to Fiscal Sponsors. The Trust may make grants to Eligible Grant Recipients, defined in Section 8, acting as fiscal sponsors (“Fiscal Sponsors”) for organizations that would be Eligible Grant Recipients but for the fact that such organizations have requested but have not yet received a favorable determination letter from the Internal Revenue Service recognizing such organization’s tax- exempt status. The Trust shall exercise expenditure responsibility within the meaning of Section 4945(h) of the Code when making grants to Fiscal Sponsors.

5. Limitations

(a) Private instrument. No part of the net earnings of the Trust shall inure to the benefit of any private person.

(b) Lobbying. No part of the activities of the Trust shall consist of carrying on propaganda, or otherwise attempting, to influence legislation. Without limiting the foregoing, and for the avoidance of doubt, the Trust may educate the public on agricultural issues, the needs of Native American farmers and ranchers, and other matters related to the Trust’s Mission, including by advocating for a particular position or viewpoint, so long as it presents a sufficiently full and fair exposition of the pertinent facts as to permit an individual or the public to form an independent opinion or conclusion.

(c) Political Activity. The Trust shall not participate in, or intervene in (including the publishing or distributing of statements), any political campaign on behalf of (or in opposition to) any candidate for public office.

(d) Grants to Individuals. The Trust shall not make grants to individuals; however, the Trust may make grants to Eligible Grant Recipients that make grants to individuals, provided that the Trust not trademark the use of the grant for any named individual and there does not exist an agreement, oral or written, whereby the Trust may cause the selection of the individual grantee by the grantee organization.

(e) Litigation. The Trust shall not make grants for the purpose of supporting litigation.

(f) Self-Dealing. The Trust shall not engage in any act of self-dealing with any disqualified persons as such terms are defined in Section 4941(d) and 4946(a)(1) of the Code.

(g) Undistributed Income. The Trust shall expend or distribute the net income and/or principal of the Trust for each taxable year at such time and in such manner as not to subject it to the tax on undistributed income imposed by Section 4942 of the Code. Excess Business Holdings. The Trust shall not retain any excess business holdings as defined in Section 4943(c) of the Code.

(h) Jeopardizing Investments. The Trust shall not make any investments that would subject the Trust to tax under Section 4944 of the Code.

(i) Taxable Expenditures. The Trust shall not make any taxable expenditures as defined in Section 4945(d) of the Code.

GRANTOR-TRUSTEE RELATIONSHIP

ARTICLE THIRTEEN

SECTION 1: It is against the purpose and intent of this Trust for the income of the Trust to be taxed to the Grantor or Trustee under the Grantor-Trust provisions of the Internal Revenue Code. No Trustee of this Trust shall be deemed a Grantor of this Trust.

SECTION 2: No member of the Board shall possess or use a power of administration in a non fiduciary capacity, nor a power exercisable solely by that Trustee to vest the Trust assets or income in himself, or any other power, the possession or use of which would cause the income of the Trust to be taxed to the First Trustee or to the Grantor.

SECTION 3: The Grantor shall retain no power to control the assets placed in the Trust, consistent with the purpose of keeping the income from being taxed to the Grantor under the Grantor-Trust provisions of the Internal Revenue Code.

SECTION 4: If it is shown that a Grantor-Trustee relationship exists, that Trustee shall immediately resign and a new Trustee assigned.

GENERAL TRUST ADMINISTRATION

ARTICLE FOURTEEN

SECTION 1: When the Trust is the holder of a copyright or *copy-written name*, and a Trustee endorses above the copyright or *copy-written name*, for the authorization or the liability on a commercial instrument or agreement, then it shall be understood that such transaction was executed in the official business of **Name of Ministry** and not in the private capacity of said Trustee, or in the private capacity of any other individual, or entity.

SECTION 2: Under no circumstances shall the Grantor have any interest in any investment made by the Board, other than such legal interest as would any outside person have to the Trust in the particular transaction.

SECTION 3: The Board of Directors may purchase from or sell to the Grantor, any property, but always at fair market value and for full consideration.

SECTION 4: The Grantor shall not have the power to reacquire Trust Property, or any part thereof by substituting other property of an equivalent value.

SECTION 5: Funds accruing in the Treasury of the Trust shall constitute the operating funds of the Trust. The Board may sell any Trust assets for the purpose of adding to these funds. The Board shall, as it deems proper and necessary, provide for operating funds through any type of borrowing, either secured or unsecured.

SECTION 6: The Board may also designate any other entity to hold funds or title to Trust property for any purposes necessary to further the intent of the Trust.

SECTION 7: The Board shall pay all mortgages, property taxes, assessments, charges, debts, bills and obligations arising out of the maintenance, operation and administration of the Trust and Estate out of Trust operating funds.

SECTION 8: The Board shall pay for any rent of a property used by the First Trustee if this Trustee uses the property to conduct the business of the Trust, or to administer any business operated by the Trust.

SECTION 9: The Board is further authorized to pay expenses of Trustees, Officers, Executives, Managers and like persons, incurred while on Trust business.

TRUST MANAGEMENT

ARTICLE FIFTEEN

SECTION 1: The Trustee shall, at its discretion, have power in connection with the management and control of the Trust to appoint one of its Trustees, or a qualified non-Trustee, to the position of General Trust Manager (GTM).

SECTION 2: The GTM shall be deemed an Independent Contractor, and not an employee of the Trust.

SECTION 3: The GTM shall be compensated by his or her services, as recorded in any Minute.

SECTION 4: The GTM shall have full authority to manage the Trust including, but not limited to, the routine day-to-day operations, subject to the approval of the Board of Directors.

SECTION 5: The GTM shall have absolute and sole discretionary power over this organization, its assets and earnings, and day-to-day operations.

SECTION 6: The Trustee shall hold all management duties and responsibilities in the event that the office of GTM is not assigned.

TRUST PROTECTOR PROVISIONS

ARTICLE SIXTEEN

SECTION 1: Designated Trust Protectors. **NAME OF PROTECTOR**. is nominated as the initial Trust Protector of the trust. If at any time **NAME OF PROTECTOR** is not able or is not willing to serve as Trust Protector, then **NAME OF SECOND NOMINEE** shall serve as the Trust Protector of the trust. The last acting Trust Protector shall also have the ability to nominate one or more successor Trust Protectors in a signed writing if there is no other named successor Trust Protector to take over for the acting Trust Protector. Notwithstanding anything to the contrary in the document or under the common law, the Trust Protector shall not be considered a fiduciary, and any actions taken by a Trust Protector shall be done in a non-fiduciary duty capacity.

SECTION 2: Appointment of Trust Protectors. If at any time there is no acting Trust Protector of the trust or of any separate trust created hereunder for a beneficiary as described above, then the following, in the order listed, shall have the ability to appoint a new Trust Protector to

serve over the trust or separate trust:

- a. The prior Trust Protector, by written document appointing a new Trust Protector
- b. The board of director by majority vote

SECTION 3: Removal of Trust Protector. The Board shall have the ability to remove the Trust Protector for any reason and at any time.

SECTION 4: Compensation of Trust Protectors. The Trust Protectors shall be paid a reasonable fee for their services as the Trust Protectors under the document.

SECTION 5: Bond. The Trust Protector shall not be required to obtain a bond in order to serve as Trustees hereunder.

SECTION 6: Resignation of Trust Protector. Any Trust Protector may resign at any time by giving a written notice to the acting Trustees named in the document or, if none, to the persons authorized to designate a successor Trustee and to the adult beneficiaries of the trust. Any such resignation shall be effective upon the knowledge of and receipt of the written resignation by the person identified in the paragraph and either the appointment of a successor Trust Protector if one is not named or the acceptance to serve as Trust Protector of a successor Trust Protector.

SECTION 7: Trust Protector Powers. Any Trust Protector shall have the following powers to aid the Trustees in carrying out the administration of the trust or any separate trust created hereunder. The Trust Protector shall have all powers outlined below in addition to any powers granted to Trust Protectors under the laws of the governing jurisdiction:

- a. The power to appoint new Trustees to serve as Trustee of the trust or any separate trust created hereunder. Any appointed Trustee may be an individual, corporation, or other entity with the power to serve in the capacity of Trustee as set forth in the trust.
- b. The power to remove any Trustees serving as Trustee of the trust or of any separate trust created hereunder for any reason or for no reason at all.
- c. The power to change the governing situs of the trust. If the acting Trustees do not want to move the situs of the trust to a different jurisdiction and the Trust Protector does, then the decision of the Trust Protector with regard to the governing situs shall apply to the administration of the trust.
- d. The power to make any decisions or exercise any powers granted elsewhere in the document.
- e. The power to cast any tie-breaking vote on any decision binding the trust when there is an even number of current Trustees serving and those Trustees are evenly split on any decision with no other way of breaking the tie. The Trust Protector shall not be liable for any results from the final decision and shall only act in the manner so as to prevent the trust from having to seek out a court order on the decision that the Trustees disagree.

TRUSTEE POWERS

ARTICLE SEVENTEEN

SECTION 1: Where is not otherwise prohibited by law the Trustee(s) shall have general common law powers over the trust estate herein, and may do anything any citizen may lawfully do in any state or country. Specifically, but not by way of limitation, they shall have all rights, authority and power as follows:

a. Incorporation by reference of powers

- (i) Except as otherwise expressly provided in the trust instrument.
- (ii) A fiduciary shall not have or exercise any power or authority, inclusive, in such a manner as, to deprive the trust involved of an otherwise available tax exemption, deduction or credit, expressly including the marital deduction, or operate to impose a tax upon donors or other persons involved in the trust. Notwithstanding any other provision of law, any power purportedly granted to a personal representative or a trustee, in the trust instrument, is void if having or exercising such power would deprive the trust of the intended tax consequences. "Tax" includes, but is not limited to, any federal income, gift, estate, generation skipping transfer or inheritance tax.
- (iii) The powers enumerated as to any fiduciary appointed in any other kind of instrument or agreement where a fiduciary is appointed.

b. Retention of property. A fiduciary may retain for such time as the fiduciary deems advisable any property, real or personal, which the fiduciary may receive, even though the retention of such property by reason of its character, amount, proportion to the total estate or otherwise would not be appropriate for the fiduciary apart from there provision.

c. Sale, exchange or other disposition of property.

- (i) A fiduciary may:
 - (1) Sell, exchange, give options upon, partition or otherwise dispose of any property or interest therein which the fiduciary may hold from time to time, with or without order of court, at public or private sale or otherwise, upon such terms and conditions, including credit, and for such consideration as the fiduciary deems advisable.
 - (2) Transfer and convey the property or interest therein which is at the disposal of the fiduciary, in fee simple, absolute or otherwise, free of all trust.
- (ii) The person dealing with the fiduciary has no duty to follow the proceeds or other consideration received by the fiduciary from such sale or exchange.

d. Investments; reinvestments; delegation of authority to invest.

- (i) A fiduciary may invest and reinvest, as the fiduciary deems advisable:
 - (1) In stocks, common or preferred, bonds, notes, mortgages or other securities in or outside the United States;
 - (2) In insurance contracts on the life of any beneficiary or of any person in whom a beneficiary has an insurable interest, or in annuity contracts for any beneficiary;
 - (3) In any real or personal property;
 - (4) In investment trusts;
 - (5) In participations in common trust funds;
 - (6) In securities of any corporation, trust, association or fund:
- (a) Which is engaged, or proposes to engage, in the business of investing, reinvesting, owning, holding or trading in securities;

- (b) Whose assets are invested principally in cash or in securities of other issuers; and
- (c) Which is registered as an investment company with the Securities and Exchange Commission; and
- (7) Generally in such property as the fiduciary deems advisable, even though the investment is not of the character approved by applicable law but for there section.

(ii) A fiduciary may delegate the authority to invest, but the fiduciary is not thereby relieved of any liability that exists in the absence of delegation.

e. Investments without diversification. A fiduciary may make investments which cause a greater proportion of the total property held by the fiduciary to be invested in investments of one type or of one company than would be considered appropriate for the fiduciary apart from their section.

f. Continuation of business.

(i) A fiduciary may, to the extent and upon such terms and conditions and for such periods of time as the fiduciary deems necessary or advisable, continue or participate in the operation of any business or other enterprise, whatever its form of organization, including but not limited to the power to:

- (1) Effect incorporation, dissolution, or other change in the form of the organization of the business or enterprise;
- (2) Dispose of any interest therein or acquire the interest of others therein;
- (3) Contribute thereto or invest therein additional capital or to lend money thereto, in any such case upon such terms and conditions as the fiduciary approves from time to time; or

(ii) Determine whether the liabilities incurred in the conduct of the business are to be chargeable solely to the part of the trust set aside for use in the business or to the trust as a whole; and

(iii) In all cases in which the fiduciary is required to file accounts in any court or in any other public office, it is not necessary to itemize receipts and disbursements and distributions of property but it is sufficient for the fiduciary to show in the account a single figure or consolidation of figures; and the fiduciary may account for money and property received from the business and any payments made to the business in lump sum without itemization.

g. Formation of corporation, limited-liability company or other entity. A fiduciary may form a corporation, limited-liability company or other entity, and transfer, assign and convey to the corporation, limited-liability company or entity all or any part of the estate or of any trust property in exchange for the stock, securities or obligations of the corporation, limited-liability company or entity, and continue to hold the stock and securities and obligations.

h. Continuation of farming operation. A fiduciary may continue any farming operation received by the fiduciary pursuant to the will, trust or other instrument and do any and all things deemed advisable by the fiduciary in the management and maintenance of such farm and the production and marketing of crops and dairy, poultry, livestock, orchard and the forest products, including, but not limited to, the following powers:

- (i) To operate the farm with hired labor, tenants or sharecroppers;
- (ii) To lease or rent the farm for cash or for a share of the crops;

- (iii) To purchase or otherwise acquire farm machinery and equipment and livestock;
- (iv) To construct, repair and improve farm buildings of all kinds needed, in the fiduciary's judgment, for the operation of the farm;
- (v) To make or obtain loans or advances at the prevailing rate or rates of interest for farm purposes such as for production, harvesting or marketing, or for the construction, repair or improvement of farm buildings, or for the purchase of farm machinery, equipment or livestock;
- (vi) To employ approved soil conservation practices in order to conserve, improve and maintain the fertility and productivity of the soil;
- (vii) To protect, manage and improve the timber and forest on the farm and sell the timber and forest products when it is to the best interest of the estate;
- (viii) To ditch, dam and drain damp or wet fields and areas of the farm when and where needed;
- (ix) To engage in the production of livestock, poultry or dairy products, and to construct such fences and buildings and plant such pastures and crops as may be necessary to carry on such operations;
- (x) To market the products of the farm; and
- (xi) In general, to employ good husbandry in the farming operation.
- (xii) Management of real property. In the management of real property a fiduciary may:
- (xiii) Improve, manage, protect and subdivide any real property;
- (xiv) Dedicate or withdraw from dedication parks, streets, highways or alleys;
- (xv) Terminate any subdivision or part thereof;
- (xvi) Borrow money for the purposes authorized by the section for such periods of time and upon such terms and conditions as to rates, maturities and renewals as the fiduciary deems advisable and mortgage or otherwise encumber any such property or part thereof, whether in possession or reversion;
- (xvii) Lease any such property or part thereof to commence at the present or in the future, upon such terms and conditions, including options to renew or purchase, and for such period or periods of time as the fiduciary deems advisable although such period or periods may extend beyond the duration of the trust or the administration of the estate involved;
- (xviii) Make gravel, sand, oil, gas and other mineral leases, contracts, licenses, conveyances or grants of every nature and kind which are lawful in the jurisdiction in which such property lies;
- (xix) Manage and improve timber and forests on such property, sell the timber and forest products, and make grants, leases and contracts with respect thereto;
- (xx) Modify, renew or extend leases;
- (xxi) Employ agents to rent and collect rents;
- (xxii) Create easements and release, convey or assign any right, title or interest with respect to any easement on such property or part thereof;
- (xxiii) Erect, repair or renovate any building or other improvement on such property, and remove or demolish any building or other improvement in whole or in part; and
- (xxiv) Deal with any such property and every part thereof in all other ways and for such other purposes or considerations as it would be lawful for any person owning the same to deal with such property either in the same or in different ways from

those specified elsewhere in the section.

j. **Payment of taxes and expenses.** A fiduciary may pay taxes, assessments, compensation of the fiduciary, and other expenses incurred in the collection, care, administration and protection of the trust or estate.

k. **Receipt of additional property.** A fiduciary may receive additional property from any source and administer such additional property as a portion of the appropriate trust or estate under the management of the fiduciary, but may not be required to receive such property without her or her consent.

l. **Dealing with other fiduciaries.** In dealing with one or more fiduciaries, a fiduciary may:

(i) Sell property, real or personal, to, or exchange property with, the trustee of any trust which the decedent or the settlor or the settlor's spouse or any child of the settlor has created, for such estates and upon such terms and conditions as to sale price, terms of payment and security as to the fiduciary seem advisable. The fiduciary has no duty to follow the proceeds of any such sale.

(ii) Borrow money for such periods of time and upon such terms and conditions as to rates, maturities, renewals and securities as the fiduciary deems available from any trust created by the organization for the purpose of:

(1) Paying debts of the organization, taxes, the costs of the administration of the FBO and like charges against the FBO, or any part thereof; or

(2) Discharging the liability of any fiduciary thereof. A fiduciary may mortgage, pledge or otherwise encumber such portion of the trust as may be required to obtain the loan or loans and to renew the loans.

m. **Borrowing money;** renewing existing loans. A fiduciary may:

(i) Borrow money for such periods of time and upon such terms and conditions as to rates, maturities, renewals and security as the fiduciary deems advisable, including the power of a corporate fiduciary to borrow from its own banking department, for the purpose of paying debts, taxes or other charges against the estate or any trust, or any part thereof;

(ii) Provide a guarantee by the trust or mortgage, pledge or otherwise encumber such portion of the estate or any trust as may be required to obtain loan or loans; and

(iii) Renew existing loans either as maker or endorser.

n. **Advancing money.** A fiduciary may advance money for the protection of the trust or estate, and for all expenses, losses and liabilities sustained in the administration of the trust or estate or because of the holding or ownership of any trust or estate assets, for which advances with any interest the fiduciary shall have a lien on the assets of the trust or estate as against a beneficiary.

o. **Voting shares.** A fiduciary may vote shares of stock owned by the estate or any trust at stockholders' meetings in person or by special, limited or general proxy, with or without the power of substitution.

p. **Registration in the name of the nominee.** A fiduciary may hold a security in the name of a nominee or in other form without disclosure of the fiduciary relationship so that title to the security may pass by delivery, but the fiduciary shall be liable for any act of the nominee in connection with the stock so held.

q. **Exercise of options, rights and privileges.** A fiduciary may:

(i) Exercise all options, rights and privileges to convert stocks, bonds, debentures,

notes, mortgages or other property into other stocks, bonds, debentures, notes, mortgages or other property;

(ii) Subscribe for other or additional stocks, bonds, debentures, notes, mortgages or other property; and

(iii) Hold such stocks, bonds, notes, mortgages or other property so acquired as investments of the estate or trust so long as the fiduciary deems advisable.

r. **Participation in reorganization.** A fiduciary may:

(i) Unite with other owners of property similar to any which may be held at any time in any trusts in carrying out any plan for the consolidation or merger, dissolution or liquidation, foreclosure, lease or sale of the property, incorporation or reincorporation, reorganization or readjustment of the capital or financial structure of any corporation, company or association the securities of which may form any portion of an estate or trust;

(ii) Become and serve as a member of a stockholders or bondholders protective committee;

(iii) Deposit securities in accordance with any plan agreed upon;

(iv) Pay any assessments, expenses or sums of money that may be required for the protection or furtherance of the interest of the distributees of an estate or beneficiaries of any trust with reference to any such plan; and

(v) Receive as investments of any estate or any trust any securities issued as a result of the execution of such a plan.

s. **Reduction of interest rate.** A fiduciary may reduce the interest rate from time to time on any obligation, whether secured or unsecured, constituting a part of the trust.

t. **Continuation of obligation.** A fiduciary may continue any obligation, whether secured or unsecured, upon and after maturity with or without renewal or extension upon such terms as the fiduciary deems advisable, without regard to the value of the security, if any, at the time of such continuance.

u. **Foreclosure; bidding in property.** A fiduciary may:

(i) Foreclose, as an incident to the collection of any bond, note or other obligation, any mortgage, deed of trust or other lien securing such bond, note or other obligation;

(ii) Bid in the property at such foreclosure sale, or acquire the property by deed from the mortgagor or obligor without foreclosure; and

(iii) Retain the property so bid in or taken over without foreclosure.

v. **Insurance.** A fiduciary may carry such insurance coverage, including public liability, for such hazards and in such amounts, either in stock companies or in mutual companies, as the fiduciary deems advisable.

w. **Collections.** A fiduciary may collect, receive and receipt for rents, issues, profits and income of an estate or trust.

x. **Litigation,** compromise or abandonment of claim. A fiduciary may compromise, adjust, arbitrate, sue on or defend, abandon or otherwise deal with and settle claims in favor of or against the estate or trust as the fiduciary deems advisable, and the fiduciary's decision shall be conclusive between the fiduciary and the beneficiaries of the estate or trust and the person against or for whom the claim is asserted, in the absence of fraud by such person, and, in the absence of fraud, bad faith or gross negligence of the fiduciary, shall be conclusive between the fiduciary and the

beneficiaries of the estate or trust.

y. **Employment and compensation of persons.** A fiduciary may compensate contractors, out of income or principal or both and in such proportion as the fiduciary deems advisable, persons deemed by the fiduciary needful to advise or assist in the proper settlement of the administration of any trust, including, but not limited to, agents, accountants, brokers, attorneys at law, attorneys-in-fact, investment brokers, rental agents, realtors, appraisers and tax specialists; and do so without liability for any neglect, omission, misconduct or default of such agent or representative if he or she was selected and retained with due care on the part of the fiduciary.

z. **Acquisition** and holding of property of two or more trusts undivided.

(i) A fiduciary may:

(1) Acquire, receive, hold and retain the principal of several trusts created by a single instrument undivided until division becomes necessary in order to make distributions.

(2) Hold, manage, invest, reinvest and account for the several shares or parts of shares by appropriate entries in the fiduciary's books of account, and allocate to each share or part of share its proportionate part of all receipts and expenses.

(ii) The provisions of the section shall not defer the vesting in possession of any share or part of share of the estate or trust.

SECTION 2: Any Trustee shall have the following powers to carry out the administration of the trust or any separate trust created hereunder.

a. **Establishment and maintenance of reserves.**

(i) A fiduciary may:

(1) Set up proper and reasonable reserves for taxes, assessments, insurance premiums, depreciation, obsolescence, amortization, depletion of mineral or timber properties, repairs, improvements and general maintenance of buildings or other property out of rents, profits or other income received; and

(2) Set up reserves also for the equalization of payments to or for beneficiaries.

(ii) The provisions of the section shall not affect the ultimate interests of beneficiaries in such reserves.

b. **Distribution in cash or kind.**

(i) A fiduciary may:

(1) Make distribution of capital assets of the estate or trust in kind or in cash, or partially in kind and partially in cash, in divided or undivided interests, as the fiduciary finds to be most practicable and for the best interests of the distributees; and

(2) Determine the value of capital assets for the purpose of making distribution thereof if and when there is more than one distributee thereof, which determination shall be binding upon the distributees unless clearly capricious, erroneous and inequitable.

(ii) The fiduciary shall not exercise any power under the section unless the fiduciary holds title to or an interest in the property to be distributed and is required or authorized to make distribution thereof.

(ii) The fiduciary has no duty to see to the application of the payments so made, if the fiduciary exercised due care in the selection of the person, including the minor or incapacitated person, to whom the payments were made, and the receipt of that person is full acquittance to the fiduciary.

c. **Allocation of receipts and expenses.** A fiduciary may determine:

(i) What is principal and what is income of any estate or trust and may allocate or apportion receipts and expenses as between principal and income in the exercise of the fiduciary's discretion, and, by way of illustration and no limitation of the fiduciary's discretion, may charge premiums on securities purchased at a premium against principal or income or partly against each.

(ii) Whether to apply stock dividends and other non cash dividends to income or principal or apportion them as the fiduciary deems advisable.

(iii) What expenses, costs, taxes (other than estate, inheritance and succession taxes) and other governmental charges shall be charged against principal or income or apportioned between principal and income and in what proportions.

d. **Execution of contract or other instrument.** A fiduciary may make contracts and execute instruments, under seal or otherwise, as may be necessary in the exercise of the powers herein granted.

ACCEPTANCE BY TRUSTEES

ARTICLE EIGHTEEN

SECTION 1: The first Trustee, for himself and all subsequent Trustees, and successor Trustees, by accepting the appointment as Trustee of this Trust causes all present and future Trustees to agree to the following:

a. The acceptance of the initial gift or conveyance of property on behalf of the Trust and acknowledge the delivery of all property specified on Schedule "A".

b. The acceptance and agreement to conduct the Trust affairs in good faith, in conformity with the terms and conditions set forth in this contract and its inherent trust provisions.

c. The agreement to exercise their best judgment and discretion to conserve and improve the property of the trust estate in accordance with decisions of the Board of Directors as set forth in the Trust Minutes.

d. The agreement to, upon final liquidation of the trust estate, to distribute the assets to the existing certificate holders as their contingent rights; may appear.

RESIGNATION AND REMOVAL OF TRUSTEES OR OFFICERS

ARTICLE NINETEEN

SECTION 1: Any Trustee, Trust Manager or Trust Officer may resign from their duties with the Trust by appropriately providing 30 days written notice.

SECTION 2: Secondary Trustee may be removed from office for gross neglect of duty.

a. Removal is done by the unanimous vote of the other Trustees.

b. By mandate of court when guilty of fraud, theft, malfeasance in office, or other legal cause;

SECTION 3: In the event of death, resignation, or removal from office of any Trustee, the Board of Directors shall, by unanimous vote, either appoint a Successor Trustee, or reduce the number of Trustees by one.

SECTION 4: If there is no Trustee left to vote for a Successor-Trustee, the Beneficiaries may apply to a court of competent jurisdiction to appoint a new First Trustee, who shall have the power to appoint other Trustees.

SECTION 5: Any new Trustee shall abide by the original Trust Contract, and shall not dissolve, terminate or impact the day-to-day operations of the Trust.

ANNUAL AND SPECIAL MEETINGS

ARTICLE TWENTY

SECTION 1: The Trustee shall provide for an annual meeting. Special meetings may be called by one or more Trustees upon three (3) days notice. This is in the event that there are other board members of Trust.

SECTION 2: A majority of all the Board shall constitute a quorum for conducting business at any meeting.

SECTION 3: Meetings may be held anywhere in the world. The Trust would pay for any and all expenses connected with a meeting.

SECTION 4: Participation and voting at any meeting may be done by telephone, internet, or other electronic means, including email and text messaging, as well as physical presence, as long as any such voting is recorded in the minutes.

SECTION 5: Any actions taken on behalf of the Trust shall require a unanimous vote of those present.

LIMITED LIABILITY OF TRUSTEES

ARTICLE TWENTY ONE

SECTION 1: The Trustee(s) shall, in their capacity as the Board, assume or incur only such liability as shall attach to the Trust assets.

SECTION 2: This liability shall not jeopardize their personal holdings or accounts and they shall be reimbursed by the Trust for any losses they should suffer for any reason while providing services as a Trustee to the Trust.

SECTION 3: No Trustee, created by this Indenture, shall ever be held liable for any action or default of any Trustee, or any other person in connection with the administration and management

of this Trust unless caused by the individual's own gross negligence or by commission of a willful act of breach of trust.

BENEFICIARIES

ARTICLE TWENTY TWO

SECTION 1: The Beneficiaries of this Trust shall be the holders of the UBIs (Units Of Beneficial Interest). There shall always be 100 Trust Beneficial Units in issuance; No more and no less. These UBIs shall be transferred by the Board of Directors in accordance with the Grantor's wishes. The Grantor or the First Trustee may add any additional Beneficiaries or remove any deceased Beneficiaries.

SECTION 2: No TCU holder shall transfer any rights in any TCUs until and unless such transfer is first approved by the Board of Directors.

SECTION 3: The number of TCUs held by each Beneficiary as a percentage of the total number of TCUs issued (100) shall also be the percentage such Beneficiary shall be entitled to any Trust Assets which remain at the termination of this Trust. All rights of any TCU holder terminate upon the death of that holder.

SECTION 4: No Beneficiary may hold title to any of the Trust assets, and shall have no vested interest in any Trust income until the actual termination of this Trust, or its early distribution. Neither the income nor principal of the Trust shall be liable for any personal debts of any Beneficiary.

SECTION 5: No Beneficiary has any management power over the Trust.

SECTION 6: No TCU holder shall have any power to sell, assign, or transfer any of their Units except under the procedures as set forth in the Bylaws.

TRANSFER OF TRUST CERTIFICATE UNITS

ARTICLE TWENTY THREE

SECTION 1: In accordance with the stated purposes of this Trust, the transfer of TCUs is strictly limited. A TCU Holder may transfer, sell, exchange or give those units to any other person(s), only if the transfer is approved by a unanimous vote by the Board of Directors, and noted by a written Minute. A new Certificate will be issued to the new TCU Holder. Approval of a legitimate request for a transfer shall not be unreasonably withheld. Approval may be withheld if, in the opinion of the Board of Directors, the transfer is connected to an attempt to use the TCU as collateral for a loan or in any anticipation of an early termination of the Trust and distribution of the assets.

SECTION 2: Any determination of the Board regarding the approval of a transfer shall be final.

SECTION 3: Any Holder may request that the Board of Directors accept a named successor Holder that will receive the original Holder's TCUs and their associated rights upon his or her death. Such requests shall be considered and such approval will not be unreasonably withheld. Upon transfer of the TCUs, the Board of Directors shall record the transfer in the records of the Trust and issue new TCUs.

SECTION 4: If no such transfer was approved and recorded in the Minutes, the TCUs will be transferred on a prorated basis among the remaining TCU Holders.

RENEWAL OF THE TRUST

ARTICLE TWENTY FOUR

SECTION 1: The Board of Directors shall have the power to renew the Trust for any reasonable term, not to exceed the original term, if it is determined by the Board to be in the best interest of the Beneficiaries and there are no objections. The decision to renew the Trust shall be made between sixty (60) days and one hundred twenty (120) days before the original termination date. Any future renewals shall be handled in the same way as the first renewal.

SECTION 2: If any Beneficiary objects to a renewal, the Board shall distribute to that Beneficiary such portion of the Trust assets as he would have been entitled, in the event that the Trust terminated, and continued the Trust with the remaining Trust assets and Beneficiaries. The TCUs held by the objecting Beneficiary shall be turned into the Trust, and shall be redistributed to the remaining Beneficiaries in equal proportion. Such distribution shall be noted in the Minutes of the Trust.

PRIVACY RIGHTS AND NON-DISCLOSURE

ARTICLE TWENTY FIVE

SECTION 1: No officer of this Trust shall disclose to anyone any information pertaining to the Trust Certificate Unit Holders. The Grantor has stated that no one will disclose the identities of any and all TCU holders.

SECTION 2: To insure this right to privacy, no non-officer of the Trust shall be permitted to view any documents of this Trust except for the "Declaration of Trust" and the "Trust Indenture" sections of the original Trust formation agreement.

ROBERT'S RULE OF ORDER

ARTICLE TWENTY SIX

SECTION 1: Where not in conflict with other provisions of these bylaws, Robert's Rules of Order, latest edition, shall control the procedure for all business meetings of the organization, the meetings of the Board, and committees established by or pursuant to the Articles of organization and/or the Bylaws of this organization.

NUMBER AND GENDER

ARTICLE TWENTY SEVEN

SECTION 1: Except where the context indicates otherwise, words in the singular number shall include the plural, and words in the masculine gender shall include the feminine, and vice versa.

MEETINGS AND FINANCIAL REPORT

ARTICLE TWENTY EIGHT

SECTION 1: The minutes of all Board meetings and the monthly and annual financial reports presented to the Board shall be open for inspection at all reasonable hours to any active member. In the event the Board meets in a duly called Executive Session, the minutes shall record the general topic of the Executive Session.

AMENDMENTS TO THE TRUST CONTRACT

ARTICLE TWENTY NINE

SECTION 1: The Board of Directors shall have the power to amend or modify the Trust Indentures and Bylaws to better carry out the purposes of the Trust, or in order to conform to or comply with any law, rule, regulation or order of any government body, provided, however that any such amendment may not be inconsistent with the original Trust purposes and intent, and not in violation of the fiduciary obligations to the Trust Certificate Unit Holders.

SECTION 2: The Trustees must vote unanimously for any such amendments to pass and take effect.

SEVERABILITY CLAUSE

ARTICLE THIRTY

SECTION 1: If any sentence, paragraph, clause, section or provision of this Trust Indenture, Bylaws, or Minutes of this Trust is held to be unenforceable or invalid, it shall not affect any of the remaining provisions.

ACCEPTANCE OF TRUST BYLAWS

ARTICLE THIRTY ONE

In witness whereof, the Grantor hereof and the First Trustee hereof, in the name of the Board, have hereunto set their hands and seals in token of the acceptance of, assent to and covenant to abide by all conditions herein imposed and expressed, this _____ day of **<MONTH> 20XX**.

Grantor: **Grantor Name**

I, **First Trustee**, by signing this Indenture hereby accept on behalf of the Board, the properties given by the Grantor, and accepts the Bylaws, conditions, terms and provisions of this Indenture, the Bylaws, and the Resolutions of the Board of Directors, which shall serve as the governing instruments of the Trust, and agrees to transfer all beneficial interest and Trust Certificate Units of the Trust to the Beneficiaries in accordance with the Settlers direction.

First Trustee: **First Trustee**

JURAT/ACKNOWLEDGMENT

<YOUR STATE>)
)
<COUNTY OR CITY>)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of _____ **20xx**, by _____, who proved to me on the basis of satisfactory evidence to be the man who came before me.

Witness/Notary:

SCHEDULE A

On this day, the Grantor of the **Name of Trust** in agreement with the Trust indenture and the Bylaws, hereby gives to the Board of Director(s), the following described property, and accepted by the First Trustee and on behalf of the Board.

The following property is to be exchanged for one-hundred (100) units of beneficial interest, hereinafter referred to as Trust Certificate Units, that shall be of an equivalent, and yet, indeterminate value to all parties.

1. **ONE DOLLAR BILL**
2. **Anything of value, and it doesn't have to be silver or gold**

As part of the consideration provided, the Grantor agrees that it shall not change this Trust Indenture in any manner; nor shall it reserve or keep any ownership or control over the principal or income of the Trust Estate, nor any power to change in any manner this Trust Indenture or Trust Bylaws.

This list of property is complete and comprehensive and is the written description of those certain properties which were agreed upon between the Grantor and the First trustee at the time of the execution of the Trust Indenture.

Grantor: **Grantor Name**

First Trustee: **Trustee Name**

JURAT/ACKNOWLEDGMENT

<YOUR STATE>)
)
<COUNTY OR CITY>)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of _____ **20XX**, by _____, who proved to me on the basis of satisfactory evidence to be the man who came before me.

Witness/Notary:

To: Board of Directors
ABC Trust
PO Box 12345
Orlando, FL [12345]

RE: Grantor's Request to Issue Trust Certificate Units to Beneficiaries.

In accordance with the Agreement, of **NAME OF TRUST** I am hereby directing the Trustees to assign and transfer (100) Trust Certificate Units to the following Beneficiaries

50 TCU to John-Alex of the Family Doe
50 TCU to Mary-anne of the Family Doe

I would appreciate your immediate attention to this request

Respectfully,

Grantor: <Grantor name>

JURAT/ACKNOWLEDGMENT

<YOUR STATE>)
)
<COUNTY OR CITY>)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of
_____, 20xx, by _____, who proved
to me on the basis of satisfactory evidence to be the man who came before me.

Witness/Notary:

SCHEDULE B

Name all the Property in the Trust

SCHEDULE C

Beneficiary Contact Information

Throughout the trust, there are references to certain beneficiaries who will receive anything from a specific bequest of personal property to a portion of the remainder of the estate. Instead of inserting that beneficiary's contact information inside of the trust, the Grantors have assembled the list of beneficiaries' contact information in order to provide a starting point for the Trustees to contact these individuals. Even if a beneficiary's contact information changes and is not updated in the schedule, it is not the Grantors intention to disinherit or change the bequest to that beneficiary unless the bequest in the trust is changed.

Name of Trust (Beneficiary) Established on Month xxth, 2023

SCHEDULE D

Memorandum of Personal Property

To: Board of Trustees

Name of Trust

PO Box 12345

Orlando, FL [12345]

As provided in Name of Trust, I have retained the right to use a memorandum as a way to direct the Trustees as to how to dispose of certain items of personal property. It is desired that the following property be distributed to the following individuals listed below as quickly as possible during the trust administration process upon the termination of the trust. If any listed beneficiary below predeceases me, then the bequest shall lapse, and the item shall be added back to trust estate.

PERSONAL PROPERTY ITEM

BENEFICIARY

CERTIFICATE OF TRUST

1. **Name of Trust.** **Name of Trust** was created by the Grantor on **Month xxth, 2023**, and is the document that the Certificate of Trust summarizes for purposes of funding assets into the trust or for any other purpose that requires an identification of the trust and the relevant trust provisions.
2. **Grantors.** The Grantor of the trust is **Name of Grantor**.
3. **Trustees.** The currently acting Trustees of the trust are **Name of Trustee**
4. **Trust Is Irrevocable.** The Grantor does not have the power to revoke or amend the trust during their lifetimes.
5. **Taxpayer Identification Number.** The taxpayer identification number for the trust is _____.
6. **Declarations Regarding Trust.** The trust is in effect as of the date of the Certificate, and it has not been modified, revoked, or amended in any way so as to make any of these declarations incorrect.
7. **Trustee Powers.** The provisions of the trust that contain the Trustees powers are attached as **Schedule A** to the Certificate of Trust.
8. **Waiver of Claim.** The Grantors and Trustees waive any action against any person or organization that relies on the Certificate of Trust, and they shall be held harmless for any resulting loss or liability from such reliance.
9. **Validity of Copies of The Certification.** A copy of the Certificate of Trust shall be as valid as an original copy for funding the trust or for any other reason.
10. **Actions by Trustees.** While the above named Trustees are serving, either may act independently to bind the trust.

Grantor:

Trustee:

Trustee:

JURAT/ACKNOWLEDGMENT

STATE OF)
)
COUNTY)

SUBSCRIBED AND SWORN TO (or affirmed) BEFORE ME on this _____ day of _____, **2023**, by _____, who proved to me on the basis of satisfactory evidence to be the man who came before me

Witness/Notary:

CERTIFICATE OF TRUST
SCHEDULE A

TRUSTEE POWERS

SECTION 1: Where is not otherwise prohibited by law the Trustee(s) shall have general common law powers over the trust estate herein, and may do anything any citizen may lawfully do in any state or country. Specifically, but not by way of limitation, they shall have all rights, authority and power as follows:

i. Incorporation by reference of powers

(i) Except as otherwise expressly provided in the trust instrument.

(ii) A fiduciary shall not have or exercise any power or authority, inclusive, in such a manner as, to deprive the trust involved of an otherwise available tax exemption, deduction or credit, expressly including the marital deduction, or operate to impose a tax upon donors or other persons involved in the trust. Notwithstanding any other provision of law, any power purportedly granted to a personal representative or a trustee, in the trust instrument, is void if having or exercising such power would deprive the trust of the intended tax consequences. "Tax" includes, but is not limited to, any federal income, gift, estate, generation skipping transfer or inheritance tax.

(iii) The powers enumerated as to any fiduciary appointed in any other kind of instrument or agreement where a fiduciary is appointed.

j. Retention of property. A fiduciary may retain for such time as the fiduciary deems advisable any property, real or personal, which the fiduciary may receive, even though the retention of such property by reason of its character, amount, proportion to the total estate or otherwise would not be appropriate for the fiduciary apart from there provision.

k. Sale, exchange or other disposition of property.

(i) A fiduciary may:

(1) Sell, exchange, give options upon, partition or otherwise dispose of any property or interest therein which the fiduciary may hold from time to time, with or without order of court, at public or private sale or otherwise, upon such terms and conditions, including credit, and for such consideration as the fiduciary deems advisable.

(2) Transfer and convey the property or interest therein which is at the disposal of the fiduciary, in fee simple, absolute or otherwise, free of all trust.

(ii) The person dealing with the fiduciary has no duty to follow the proceeds or other consideration received by the fiduciary from such sale or exchange.

l. Investments; reinvestments; delegation of authority to invest.

(i) A fiduciary may invest and reinvest, as the fiduciary deems advisable:

(1) In stocks, common or preferred, bonds, notes, mortgages or other securities in or outside the United States;

(2) In insurance contracts on the life of any beneficiary or of any person in whom a beneficiary has an insurable interest, or in annuity contracts for any beneficiary;

- (3) In any real or personal property;
- (4) In investment trusts;
- (5) In participations in common trust funds;
- (6) In securities of any corporation, trust, association or fund:
 - (a) Which is engaged, or proposes to engage, in the business of investing, reinvesting, owning, holding or trading in securities;
 - (b) Whose assets are invested principally in cash or in securities of other issuers; and
 - (c) Which is registered as an investment company with the Securities and Exchange Commission; and
- (7) Generally in such property as the fiduciary deems advisable, even though the investment is not of the character approved by applicable law but for there section.

(ii) A fiduciary may delegate the authority to invest, but the fiduciary is not thereby relieved of any liability that exists in the absence of delegation.

m. Investments without diversification. A fiduciary may make investments which cause a greater proportion of the total property held by the fiduciary to be invested in investments of one type or of one company than would be considered appropriate for the fiduciary apart from their section.

n. Continuation of business.

(i) A fiduciary may, to the extent and upon such terms and conditions and for such periods of time as the fiduciary deems necessary or advisable, continue or participate in the operation of any business or other enterprise, whatever its form of organization, including but not limited to the power to:

- (1) Effect incorporation, dissolution, or other change in the form of the organization of the business or enterprise;
- (2) Dispose of any interest therein or acquire the interest of others therein;
- (3) Contribute thereto or invest therein additional capital or to lend money thereto, in any such case upon such terms and conditions as the fiduciary approves from time to time; or

(ii) Determine whether the liabilities incurred in the conduct of the business are to be chargeable solely to the part of the trust set aside for use in the business or to the trust as a whole; and

(iii) In all cases in which the fiduciary is required to file accounts in any court or in any other public office, it is not necessary to itemize receipts and disbursements and distributions of property but it is sufficient for the fiduciary to show in the account a single figure or consolidation of figures; and the fiduciary may account for money and property received from the business and any payments made to the business in lump sum without itemization.

o. Formation of corporation, limited-liability company or other entity. A fiduciary may form a corporation, limited-liability company or other entity, and transfer, assign and convey to the corporation, limited-liability company or entity all or any part of the estate or of any trust property in exchange for the stock, securities or obligations of the corporation, limited-liability company or entity, and continue to hold the stock and securities and obligations.

p. Continuation of farming operation. A fiduciary may continue any farming operation

received by the fiduciary pursuant to the will, trust or other instrument and do any and all things deemed advisable by the fiduciary in the management and maintenance of such farm and the production and marketing of crops and dairy, poultry, livestock, orchard and the forest products, including, but not limited to, the following powers:

- (i) To operate the farm with hired labor, tenants or sharecroppers;
- (ii) To lease or rent the farm for cash or for a share of the crops;
- (iii) To purchase or otherwise acquire farm machinery and equipment and livestock;
- (iv) To construct, repair and improve farm buildings of all kinds needed, in the fiduciary's judgment, for the operation of the farm;
- (v) To make or obtain loans or advances at the prevailing rate or rates of interest for farm purposes such as for production, harvesting or marketing, or for the construction, repair or improvement of farm buildings, or for the purchase of farm machinery, equipment or livestock;
- (vi) To employ approved soil conservation practices in order to conserve, improve and maintain the fertility and productivity of the soil;
- (vii) To protect, manage and improve the timber and forest on the farm and sell the timber and forest products when it is to the best interest of the estate;
- (viii) To ditch, dam and drain damp or wet fields and areas of the farm when and where needed;
- (ix) To engage in the production of livestock, poultry or dairy products, and to construct such fences and buildings and plant such pastures and crops as may be necessary to carry on such operations;
- (x) To market the products of the farm; and
- (xi) In general, to employ good husbandry in the farming operation.
- (xii) Management of real property. In the management of real property a fiduciary may:
- (xiii) Improve, manage, protect and subdivide any real property;
- (xiv) Dedicate or withdraw from dedication parks, streets, highways or alleys;
- (xv) Terminate any subdivision or part thereof;
- (xvi) Borrow money for the purposes authorized by the section for such periods of time and upon such terms and conditions as to rates, maturities and renewals as the fiduciary deems advisable and mortgage or otherwise encumber any such property or part thereof, whether in possession or reversion;
- (xvii) Lease any such property or part thereof to commence at the present or in the future, upon such terms and conditions, including options to renew or purchase, and for such period or periods of time as the fiduciary deems advisable although such period or periods may extend beyond the duration of the trust or the administration of the estate involved;
- (xviii) Make gravel, sand, oil, gas and other mineral leases, contracts, licenses, conveyances or grants of every nature and kind which are lawful in the jurisdiction in which such property lies;
- (xix) Manage and improve timber and forests on such property, sell the timber and forest products, and make grants, leases and contracts with respect thereto;
- (xx) Modify, renew or extend leases;
- (xxi) Employ agents to rent and collect rents;
- (xxii) Create easements and release, convey or assign any right, title or interest with respect to any easement on such property or part thereof;

(xxiii) Erect, repair or renovate any building or other improvement on such property, and remove or demolish any building or other improvement in whole or in part; and

(xxiv) Deal with any such property and every part thereof in all other ways and for such other purposes or considerations as it would be lawful for any person owning the same to deal with such property either in the same or in different ways from those specified elsewhere in the section.

j. **Payment of taxes and expenses.** A fiduciary may pay taxes, assessments, compensation of the fiduciary, and other expenses incurred in the collection, care, administration and protection of the trust or estate.

k. **Receipt of additional property.** A fiduciary may receive additional property from any source and administer such additional property as a portion of the appropriate trust or estate under the management of the fiduciary, but may not be required to receive such property without her or her consent.

l. **Dealing with other fiduciaries.** In dealing with one or more fiduciaries, a fiduciary may:

(i) Sell property, real or personal, to, or exchange property with, the trustee of any trust which the decedent or the settlor or the settlor's spouse or any child of the settlor has created, for such estates and upon such terms and conditions as to sale price, terms of payment and security as to the fiduciary seem advisable. The fiduciary has no duty to follow the proceeds of any such sale.

(ii) Borrow money for such periods of time and upon such terms and conditions as to rates, maturities, renewals and securities as the fiduciary deems available from any trust created by the organization for the purpose of:

(1) Paying debts of the organization, taxes, the costs of the administration of the FBO and like charges against the FBO, or any part thereof; or

(2) Discharging the liability of any fiduciary thereof. A fiduciary may mortgage, pledge or otherwise encumber such portion of the trust as may be required to obtain the loan or loans and to renew the loans.

m. **Borrowing money;** renewing existing loans. A fiduciary may:

(i) Borrow money for such periods of time and upon such terms and conditions as to rates, maturities, renewals and security as the fiduciary deems advisable, including the power of a corporate fiduciary to borrow from its own banking department, for the purpose of paying debts, taxes or other charges against the estate or any trust, or any part thereof;

(ii) Provide a guarantee by the trust or mortgage, pledge or otherwise encumber such portion of the estate or any trust as may be required to obtain loan or loans; and

(iii) Renew existing loans either as maker or endorser.

n. **Advancing money.** A fiduciary may advance money for the protection of the trust or estate, and for all expenses, losses and liabilities sustained in the administration of the trust or estate or because of the holding or ownership of any trust or estate assets, for which advances with any interest the fiduciary shall have a lien on the assets of the trust or estate as against a beneficiary.

o. **Voting shares.** A fiduciary may vote shares of stock owned by the estate or any trust at stockholders' meetings in person or by special, limited or general proxy, with or without the power of substitution.

p. **Registration in the name of the nominee.** A fiduciary may hold a security in the name of a nominee or in other form without disclosure of the fiduciary relationship so that title to the security may pass by delivery, but the fiduciary shall be liable for any act of the nominee in connection with the stock so held.

q. **Exercise of options, rights and privileges.** A fiduciary may:

- (i) Exercise all options, rights and privileges to convert stocks, bonds, debentures, notes, mortgages or other property into other stocks, bonds, debentures, notes, mortgages or other property;
- (ii) Subscribe for other or additional stocks, bonds, debentures, notes, mortgages or other property; and
- (iii) Hold such stocks, bonds, notes, mortgages or other property so acquired as investments of the estate or trust so long as the fiduciary deems advisable.

r. **Participation in reorganization.** A fiduciary may:

- (i) Unite with other owners of property similar to any which may be held at any time in any trusts in carrying out any plan for the consolidation or merger, dissolution or liquidation, foreclosure, lease or sale of the property, incorporation or reincorporation, reorganization or readjustment of the capital or financial structure of any corporation, company or association the securities of which may form any portion of an estate or trust;
- (ii) Become and serve as a member of a stockholders or bondholders protective committee;
- (iii) Deposit securities in accordance with any plan agreed upon;
- (iv) Pay any assessments, expenses or sums of money that may be required for the protection or furtherance of the interest of the distributees of an estate or beneficiaries of any trust with reference to any such plan; and
- (v) Receive as investments of any estate or any trust any securities issued as a result of the execution of such a plan.

s. **Reduction of interest rate.** A fiduciary may reduce the interest rate from time to time on any obligation, whether secured or unsecured, constituting a part of the trust.

t. **Continuation of obligation.** A fiduciary may continue any obligation, whether secured or unsecured, upon and after maturity with or without renewal or extension upon such terms as the fiduciary deems advisable, without regard to the value of the security, if any, at the time of such continuance.

u. **Foreclosure; bidding in property.** A fiduciary may:

- (i) Foreclose, as an incident to the collection of any bond, note or other obligation, any mortgage, deed of trust or other lien securing such bond, note or other obligation;
- (ii) Bid in the property at such foreclosure sale, or acquire the property by deed from the mortgagor or obligor without foreclosure; and
- (iii) Retain the property so bid in or taken over without foreclosure.

v. **Insurance.** A fiduciary may carry such insurance coverage, including public liability, for such hazards and in such amounts, either in stock companies or in mutual companies, as the fiduciary deems advisable.

w. **Collections.** A fiduciary may collect, receive and receipt for rents, issues, profits and income of an estate or trust.

x. **Litigation,** compromise or abandonment of claim. A fiduciary may compromise,

adjust, arbitrate, sue on or defend, abandon or otherwise deal with and settle claims in favor of or against the estate or trust as the fiduciary deems advisable, and the fiduciary's decision shall be conclusive between the fiduciary and the beneficiaries of the estate or trust and the person against or for whom the claim is asserted, in the absence of fraud by such person, and, in the absence of fraud, bad faith or gross negligence of the fiduciary, shall be conclusive between the fiduciary and the beneficiaries of the estate or trust.

y. **Employment and compensation of persons.** A fiduciary may compensate contractors, out of income or principal or both and in such proportion as the fiduciary deems advisable, persons deemed by the fiduciary needful to advise or assist in the proper settlement of the administration of any trust, including, but not limited to, agents, accountants, brokers, attorneys at law, attorneys-in-fact, investment brokers, rental agents, realtors, appraisers and tax specialists; and do so without liability for any neglect, omission, misconduct or default of such agent or representative if he or she was selected and retained with due care on the part of the fiduciary.

z. **Acquisition** and holding of property of two or more trusts undivided.

(i) A fiduciary may:

(1) Acquire, receive, hold and retain the principal of several trusts created by a single instrument undivided until division becomes necessary in order to make distributions.

(2) Hold, manage, invest, reinvest and account for the several shares or parts of shares by appropriate entries in the fiduciary's books of account, and allocate to each share or part of share its proportionate part of all receipts and expenses.

(ii) The provisions of the section shall not defer the vesting in possession of any share or part of share of the estate or trust.

SECTION 2: Any Trustee shall have the following powers to carry out the administration of the trust or any separate trust created hereunder.

a. **Establishment and maintenance of reserves.**

(i) A fiduciary may:

(1) Set up proper and reasonable reserves for taxes, assessments, insurance premiums, depreciation, obsolescence, amortization, depletion of mineral or timber properties, repairs, improvements and general maintenance of buildings or other property out of rents, profits or other income received; and

(2) Set up reserves also for the equalization of payments to or for beneficiaries.

(ii) The provisions of the section shall not affect the ultimate interests of beneficiaries in such reserves.

b. **Distribution in cash or kind.**

(i) A fiduciary may:

(1) Make distribution of capital assets of the estate or trust in kind or in cash, or partially in kind and partially in cash, in divided or undivided interests, as the fiduciary finds to be most practicable and for the best interests of the distributees; and

(2) Determine the value of capital assets for the purpose of making distribution

thereof if and when there is more than one distributee thereof, which determination shall be binding upon the distributees unless clearly capricious, erroneous and inequitable.

(ii) The fiduciary shall not exercise any power under the section unless the fiduciary holds title to or an interest in the property to be distributed and is required or authorized to make distribution thereof.

(ii) The fiduciary has no duty to see to the application of the payments so made, if the fiduciary exercised due care in the selection of the person, including the minor or incapacitated person, to whom the payments were made, and the receipt of that person is full acquittance to the fiduciary.

c. **Allocation of receipts and expenses.** A fiduciary may determine:

(i) What is principal and what is income of any estate or trust and may allocate or apportion receipts and expenses as between principal and income in the exercise of the fiduciary's discretion, and, by way of illustration and no limitation of the fiduciary's discretion, may charge premiums on securities purchased at a premium against principal or income or partly against each.

(ii) Whether to apply stock dividends and other noncash dividends to income or principal or apportion them as the fiduciary deems advisable.

(iii) What expenses, costs, taxes (other than estate, inheritance and succession taxes) and other governmental charges shall be charged against principal or income or apportioned between principal and income and in what proportions.

d. **Execution of contract or other instrument.** A fiduciary may make contracts and execute instruments, under seal or otherwise, as may be necessary in the exercise of the powers herein granted.

ADMINISTRATIVE CONTACT INFORMATION

Successor Trustee:

NAME:

ADDRESS:

PHONE:

Co-Trustee:

NAME:

ADDRESS:

PHONE:

Trust Protector:

NAME:

ADDRESS: